

Criminal Law

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Unit One - Introduction to Criminal Law

Section 1 General Considerations

1.1 The Place Of Criminal Law In Criminal Science

“Crime” is an offence committed by an individual or group of people who are part of a society. Therefore, study of crime i.e. Criminal Science” is a social study. Thus, the main aims of Criminal Science are:

- To discover the causes of crime
- To devise effective methods of reducing crime.
- To devise machinery dealing with crimes.

Cont.

Based on these objectives, three main branches of Criminal Science have developed:-

1. Criminology:- the study of crime and criminal punishment as a social phenomena, which is further classified in to two branches.
i ,e

A. Criminal Biology:- this deals with the mental or physical constitution of the delinquent himself such as hereditary traits and physical defects.

Cont.

B. Criminal Sociology:- this deals with the enquiry into the effects of elements of environment (such as as politics, economic conditions and so on) Cause of criminality.

2. Criminal Policy or penology:- this is the branch of criminal science dealing with mitigating the harm of crime. Criminal policy takes the imputes of criminology thus this branch can be described as a science which deals with treatment, prevention and control of crimes.

Cont.

3. Criminal law: this is the means to implement the criminal policies. In other words the Criminal Policies postulated by the above twin sister-branches i.e. Criminology and Penology, are implemented through the instrumentality of ‘Criminal law’.

Branches of criminal law

Substantive Criminal law & procedural criminal law

General objectives of criminal law

As it can be deduced from Article 1 of the Ethiopian criminal code, the main objectives of criminal law can be summarized as

- Ensuring peace, order and security of the state, its peoples and inhabitants.
- To punish criminal activity of criminals. We can say that punishment under our criminal law can have a, *preventive, reformative deterrent and retributive* objectives.

Criminal law, private law and morality-distinguished

A wrong is an act which might be forbidden either by the society or by law, if not by both.

A certain society prohibits or forbids a certain activities based on its values and norms these acts can be described as *moral wrongs*.

N.B All moral wrongs are not legal wrongs(crimes)and Vice versa.

Cont.

If a certain act is presumed to affect private individuals it is Private wrong **(civil wrong)** e.g. non-performance of a contractual obligation or extra-contractual liabilities can be regarded as Civil wrongs. Whereas the threat of theft, robbery, a murder do not only affect the individual victim only but the public at large.

Relation Between Morality and Criminal Law

Morality and criminal law are related to each other in that they both aim at. morality is one impute of criminal law. Thus, most of the time crime is an act which both forbidden by law and the moral sentiments of the society.

Social change and Criminal law

As coping up with dynamism is one feature of law ..it is prevalent to see modifications in criminal laws of countries.

e.g. Abortion was a crime in almost all countries but contemporarily there is a shift of paradigm towards legalizing abortion.

Development of Criminal Law of Ethiopia

The history of Ethiopian criminal law reveals the following important legislations....

- The Fewuse menfessawi
- The Fetha Negest
- The Ethiopian penal code of the empire of Ethiopia, 1957.
- The 1974 revolution and criminal law
- Special penal Code of 1981

Schemes of the Criminal Code of FDRE 2005

The Criminal Code of FDRE, 2005, on the whole, consists of **three parts, eight books, twenty eight Titles** which include **865 Articles arranged in seventy two Chapters.**

General Part

The General part has two books namely

Part I of the Criminal Code is entitled “*General Principles of Criminal Liability*”, **Part II** “*Special Part* and **Part III** is *Petty Code*”.

The General Part has two Books, namely:

Book. I consists of from Art **1-86** of the code which states “ crimes and the criminal”. This part lays down the general principles relating to Criminal law and its scope (**See Art 1-22**) the crime and its Commission (**See Art 23-47**) and the condition of Liability to Punishment (**See Art 48-86**)

Cont.

- The General Part of the Criminal Code is the most technical part of the Code and the basic tool in the interpretation of any provision that embodies a specific crime.
- Issues such as the principle of *legality, negligence, criminal responsibility, participation, lawful acts, justifiable and excusable acts, extenuating and aggravating circumstances* etc. are covered in Book I.

Cont.

Book. II (Arts. 87-237) is titled “*The Criminal punishment and its Application*”. This book deals with calculation of sentences, kinds of punishment, ordinary punishments applicable to adults, special measures applicable to adults, penalties applicable to young persons and also rules regarding determination , suspension, discontinuance and extinction of penalty.

II The Special Part;

The “*Special Part*” of the code embodies ‘*Specific Crimes*’ which are organized under different titles systematically. This part of the Code includes four books. Each Book is sub – divided into Titles, chapters, sections, paragraphs and finally Articles. The Books of part II of the Code are follows.

Cont.

Book III (Arts.238-374) incorporates ***‘Crimes against the State or National or International Interests’***. **Book IV (Arts.375-537)** deals with ‘Crimes against Public Interest or the Community’, **Book V (Arts. 538-661)** embodies ‘Crimes against Individuals and the Family’, and ‘Crimes against Property’ are found in **Book VI (Arts. 662-733)** of the Code.

Part III “The Code of Pity Offences”

This part of the Code also has two subdivisions, a **General Part and a Special Part**. The General Part embodies the rules governing liability to punishments and the Special Part deals with “*Petty Offences*” under specific heads.

Classification of Crimes Under the Criminal Code

Generally, offences may be classified based on two criteria:

1. Classification based on the “*Seriousness of the Crimes*”.
2. Classification based on the “*Subject matter*” of the Crime.

1. Classification based on the Seriousness of the Crime.

Countries classify the seriousness of a crime in different degrees of seriousness. For instance English law classifies offenses as

- *Treasons*

- *Felony* &

- *Misdemeanors.*

Cont.

- For procedural purposes, in the United Kingdom, crimes are also classified into *indictable crimes* and *summary offences*. This classification determines whether a certain crime shall be tried by *jury* or not. According to this classification indictable offences are to be tried by jury while summary offences are to be tried by magistrate courts without jury.

Cont.

- The FDRE Criminal Code follows a bi-partite classification of crimes and considers crimes into serious *(Articles 1-733)* and petty offences *(Articles 734-865)*.

Cont.

The criminal code of FDRE has adopted different classification *i.e.* there is no explicit distinction between crimes, the range of punishment implies the gravity of crimes. Thus, crimes of grave nature are punishable with ***Rigorous Imprisonment*** in Central Prisons for a period of one to twenty five years (Art.108)

“A crime of not very serious nature” may subject to special provisions that may face ***‘simple imprisonment’*** for a term of ten days to three years (Art. 106), subject to Special provisions that may extend the period beyond three years.

Cont.

“Petty offences” on the other hand, are punishable with fine or arrest for a relatively shorter period of one day to three months (Art .747), subject to certain aggravating exceptions (Art.767-769).

The classification of crimes under the Code may be identified on the basis of the punishments entailing them. The three variations in the deprivation of liberty , namely, *‘rigorous imprisonment’*, *‘simple imprisonment’* & *‘arrest’* apparently denote a de facto classification into *‘very serious crimes’*, *‘not very serious crimes, and ‘petty offences’*.

UNIT-II

**BASIC PRINCIPLES OF
CRIMINAL LAW**

General Overview on Basic Principle of Criminal Law

There are certain fundamental principles which permeate and unify criminal laws. These are

- **The Principle of Legality,**
- **The Principle of Equality &**
- **The Principle of Individual Autonomy.**

Section 1 The Principle of Legality

The basic principle of legality requires the definition of a crime and the prescription corresponding penalties with maximum certainty. *(See Art 2(1) & (2))*

Cont.

For the purpose of convenience and clarity, the principles are discussed in light of their embodiment in the Ethiopian criminal Code.

1. The Principle of Maximum Certainty of Crimes and Penalizes.

There are two pillars of the principle of legality which are inherited from the *Roman Law Doctrine* which latter embedded in almost every modern legal systems. In short, they are,

Cont.

❑ No Crime, Unless Specified by law.

(“Nullum Crimen, Sine Leg”) See Art 2(1)

❑ No Penalties Other than those Prescribed by law.

(“Nulla Poena Sine Lege”) See Art 2(2)

2. The Principles of Strict Interpretation and Prohibition of Analogy

Sub-Art 3&4 of Article 2 require interpretation of criminal law provisions without resorting to Analogy.

Cont.

- According to Art 2(3) Courts can not create offences by analogy. *e.g.*

A court can't punish an act which it may consider as relatively immoral or serious in comparison to another explicitly punishable act.

Cont.

- However, this doesn't preclude interpretation of the law as long as the court takes due precaution not to create analogy. When the law is clear there is no need of interpretation. Thus, interpretation is ought to be applicable when a certain provision is ambiguous (unclear) or inconsistent thereby putting the court in doubts.

3. The prohibition of Double Jeopardy

The principle forbids double jeopardy and has its source from the Roman law doctrine “*Non bis in idem*”.

Here in order to exist a double jeopardy the punishment must be from the same *(single)* offence which is *committed at the same time & upon the same premise, life or fact.*

However, it should be noted that a single sentence may embody more than one items of punishment(e.g. imprisonment and payment of fine)

Cont.

- The rule is contained in the common law maxim “*autrefois acquit and autrefois convict*” which means “the previous acquittal or previous conviction may be pleaded by the accused as a bar to the subsequent trial”.
- Double jeopardy is referred to as a legal technicality instead of a legal right. Double jeopardy allows the defendants not to address whether the crime was actually committed or if they are guilty or innocent.

Cont.

4, Principle Non-retroactivity

This principle (stipulated under Art 5&6) enforces the principle of legality because non retrospective application of criminal law holds that no one shall be punished for an act that was not an offence during the period of its commission, nor shall a graver penalty be imposed other than the one that was in force when the offence was committed.

Cont.

- The concept of non-retroactivity has been incorporated in the Constitution of Ethiopia under article 22(2) Which reads:
“Notwithstanding the provisions of sub Article 1 of this Article, a law promulgated subsequent to the commission of the offence shall apply if it is advantageous to the accused or convicted person.”
- It means there can be no *ex-post facto* Criminal law or in other words, the Criminal laws should not have retrospective operation

Cont.

Art 5 of the cc lays down three important rules in this regard.

1. As per the Sub-Art. (1) , if the crime in question is one which is declared a crime under both the old and new Codes the crime shall be tried in accordance with the old Code.
2. Under the Sub-Art. (2), if the said act is declared crime only under the new Code and not under the old Code such an act is not punishable, since there was no violation of law when it was committed.

Cont.

3. The Sub-Art. (3), says that if the act is a crime under the old Code only and not under the new Code , any proceedings instituted in respect of such an act shall be discontinued , since now it ceases to be a crime.

- The major exception to the principle of non retroactivity of is the relative preference of retroactive enforcements of the new code in view of the offenders advantage.

a), Application of the More Favorable Law Art. 6

b), Application as to Measures Art. 7

Cont.

Section 2. The Principle Of Equality

*“All men are equally the children of god and Equal in his sight
Despite their widely differing Temporal circumstances”*

Harris, ‘The Quest for Equality’ (1960)

These constitutional guarantees of equality take a great number of forms but two of the formulations are most often used. They are:

- That there should be “Equality before the law” and
- That “the equal protection of the laws” should not be denied.

Cont.

As stated under Art 4 of the FDRE criminal law, criminal law applies to all alike aside from certain immunities provided by law. Thus penal prescription should be enforced irrespective of social status, race, religion, sex etc..

Here a question arises as to how equal protection of might be observed?

“Equality consists in treating equals, equally and unequal unequally.”—Aristotel

Cont.

The principle of equality before the law does not prohibit making certain differences in the treatment of criminals. Art. 4 of the Criminal Code specifically mention three exceptions to the principle of equality:

- Immunities sanctioned by Public International law,
- Immunities sanctioned by Constitutional law, and
- Requirements of individualization of Criminal Justice. (*E.g Special Treatment of Women, Young Persons and the Feeble Minded*)

Cont.

- **Section 3. The Principle Of Individual Autonomy:**

The principle of individual autonomy----*that each individual should be treated as responsible for his or her own behavior.* This principle has factual and normative elements that must be explored.

Some dilemmas relating to the principle of Autonomy:

❑ ***Euthanasia ..Your Body, Your Death, Your Choice.***

Voluntary euthanasia V Non-voluntary euthanasia

Cont.

- ❑ The Principle Of Double Effect:
- ❑ Euthanasia and the Issue of Limitations to
Autonomy

UNIT-III

**JURISDICTION OF THE ETHIOPIAN
CRIMINAL CODE**

Jurisdiction of the Ethiopian Criminal code

(Arts 11-22 of The Criminal Code of FDRE, 2005)

- Jurisdiction is an aspect of sovereignty and refers to judicial, legislative, and administrative competence.
- ‘Jurisdiction’, generally, means “the legal competence of a particular court to hear a certain type or class of cases”.
- These conflicts in jurisdiction may be of two kinds:
 1. Negative Conflict of Jurisdiction
 2. Positive Conflict of Jurisdiction

Cont.

The Conflict of jurisdiction might arise at different levels.

1. Conflict of Jurisdiction at National Level

Such conflicts may arise as between Ethiopian Criminal courts, which shall be settled in accordance with Arts 99-107 of the Criminal Procedure Code.

Cont.

2. Conflicts of Jurisdiction at International level

- These conflicts arise between an Ethiopian court and a foreign court, which can be settled in accordance with Arts 11-22 of the Criminal Code. These provisions are new in Ethiopian legislation, inserted in view of the increase in exchanges and relations of all kinds between Ethiopia and other parts of the world.

Cont.

Fundamental Principles Of Application Of Jurisdiction

- The principle of territoriality (*See Art 11cc*)
- The Principle of Quasi-Territoriality or the Protective or Security Principle (*See Art 13 cc*)
- The Principle of Active Personality or the Nationality Principle (*See Art 14, 15(2) &18(2)cc*)
- The Principle of Passive Personality or the Passive Nationality Principle (*See Art 17cc*)

Cont.

- Crimes Under International Law (See Art 17 cc..The Hague Convention of 1907 and the Geneva Convention of 1949)

Application Of The Criminal Code As To Place

The jurisdiction of Ethiopian courts may be studied under the following heads.

1. Principal Jurisdiction

The Criminal Courts of Ethiopia are deemed to have principal jurisdiction nesshin the meaning of the code in the cases provided for by Arts. 11, 12, 13, 14 and 15(2).

Territorial Application Of The Principal Jurisdiction

- For the territorial application of jurisdiction three conditions have to be fulfilled:
- 1. Crime committed by ***any person***,(*exception, immunity*)
- 2. The crime must be punishable under the Ethiopian law
- 3. The crime must have been *committed on the Ethiopian territory*,

Extra-Territorial Application Of The Principal Jurisdiction (Arts. 13-16):

The Criminal Code envisages three specific instances that necessitate the extra- territorial application of its jurisdiction.

- ❑ Crimes committed by any person in a foreign country against interests of Ethiopia, Art. 13, (*principle of quasi-territoriality*)
- ❑ Crimes committed by an Ethiopian enjoying immunity in a foreign country Art. 14,
- ❑ Crimes committed by a member of Ethiopian Defence Forces in a foreign Country, Art 15 (2).

Subsidiary Jurisdiction

Derivative Jurisdiction refers to the jurisdiction where the Ethiopian courts derive from the foreign courts. This is to prevent a negative conflict of jurisdiction.

- ❑ Crimes committed by members of the Defence Forces against the ‘ordinary law’ of a foreign country (Art. 15(1))
- ❑ Crimes committed in a foreign country “against international law or international crimes specified in Ethiopian legislation, or against an international treaty or convention to which Ethiopia has adhered (Art. 17/1/a.)
- ❑ Crimes committed in a foreign country “against public health and morals specified in Art. 510, 567, 605, 606, 609 or 610 of EPC. (Art. 17/1/b)

Cont.

- Crimes committed abroad against an Ethiopian national or crimes committed by Ethiopians while abroad- if the crime is punishable under both the laws and is grave enough to justify extradition. (Art. 18(1))

Effects Of Foreign Sentences Under Subsidiary Jurisdiction

- In all cases where Ethiopian courts have *subsidiary jurisdiction only* (Arts. 15(1), 17 and 18), the criminal cannot be tried and sentenced in Ethiopia if he was regularly discharged or acquitted for the same act in a foreign country.

Place and Time of Crime: Art. 25

Place and Time of Completed Crimes

1, The General Rule: Art 25(1)

Here under this rule the place and the time where the crime is committed can confer the jurisdiction for a country.

2, With regard to Non-Instantaneous Crimes: Art 25(2)

3, In case of combination or Repetition of Acts: Art25(3)

Place and Time of Attempted Crimes

The Place and Time of Attempted Crimes

- As a general rule, the place where and the time when the criminal performed or failed to perform the preliminary acts which constitute such an attempt confers jurisdiction.
- In case of non-instantaneous crimes, an attempt is deemed to have been committed both at the place where the criminal attempted the crime and the place he intended the result to be produced. For purposes of prosecution, the jurisdiction of the place where the result was achieved is subsidiary to that of the place of commission.

Section.2. Extradition

Meaning of Extradition

- The term ‘extradition’ denotes the process whereby under a treaty or upon a basis of reciprocity one state surrenders to another state at its request a person accused or convicted of a crime committed against the laws of the requesting state, such requesting state being competent to try the alleged criminal.

The Grand Rational Behind Extradition

A, The general desire of all states to ensure that serious crimes do not go unpunished. ‘*aut punire aut dedere*’

Cont.

- The state on whose *territory* the crime has been committed is best able to try the criminal because the evidence is more freely available there, and that state has the greatest interest in the punishment of the criminal, and the greatest facilities for ascertaining the truth.
- There are some divergences on the subject of extradition between the different state laws, particularly

Cont.

1. Extraditability of nationals of the state of asylum;
2. Evidence of guilt required by the state of asylum; and
3. Relative powers of the executive and judicial organs in the procedure of surrendering the fugitive criminal.

Conditions for Extradition

- *There must be an extraditable person.*
- *There must be an extradition crime.*

As a general rule, the following offences are not subject to extradition proceedings.

Extradition Under the Criminal Code of FDRE, 2004 Art.21

❑ Extradition of a “Foreigner” Art. 21(1)

❑ Extradition of “Ethiopians” Art. 21 (2)

An Ethiopian national cannot be extradited to a foreign country. However when such denial to surrender is made, he shall be tried by Ethiopian courts and under Ethiopia law.

Procedure to Request for Extradition (Art 21(1)&(3)

Extradition shall be granted on the application made in proper form by the state where the crime was committed provided; the crime does not directly and principally concern the Ethiopian state (Art. 13).

UNIT-IV
CONDITIONS OF CRIMINAL
LIABILITY

General Principles of Criminal Liability

Essential Elements of Crime

The elements of crime might be extracted from this pp
“no man may be found guilty of crime and therefore legally punishable unless in addition to having brought about a harm which the law forbids, he had at the same time a legally reprehensible state of mind”

This recognizes these two essential elements of crime.

- ☐ Physical Element (*Legal & material Element*)
- ☐ Mental Element (*Mental Element*)

Cont.

Meaning of *Actus reus*

- The legal and material elements of a crime can jointly referred as the '*actus reus*' of an offence. '*Actus reus*' considers whether the offenders' act or omission has coursed an event (Eg death) Prohibited by law.

Meaning of *Mens rea*

This refers to the moral blame worthiness of the offender. *Actus reus* without *mens rea* does not constitute a punishable offence(*an act is not guilty without a guilty mind*)

Elements of a Punishable Offence

*“A Crime is only completed when all its **legal, material and moral ingredients** are present.”*

Art 23(2) distinctly embodies three elements of a crime *i.e. legal, material and moral elements.*

I. Legal Element

This refers to whether an act, omission or possession is expressly prohibited by criminal law and whether penalties or measures are prescribed thereof. Thus acts or omission not prohibited by law are not considered offences.

II. Material Element

- This element embraces the act or omission of the offender and its causal relation with the offence and the material circumstances in which the act or omission is committed.
- It is considered to be a requirement to constitute criminal liability as it is undesirable to punish one merely for his/her thoughts. Accordingly, the material element of a crime may be classified as commission, omission,

Cont.

- The second paragraph of Art 23(1) provides that “*In this Code, an act consists of the commission of what is prohibited or the omission of what is prescribed by law is a crime*”

a) Commission (Act)

Thus, there are four categories of harmful events resulting from active conduct, of which only one category comes under the expression of *actus reus*.

- Events resulting from acts commanded by law.
- Events resulting from acts permitted by law.

Cont.

- Events resulting from acts justified by law.
- Unlawfull comissions (*Actus Reaus*)

b) Omission

The word ‘omission’ is generally used in the sense of intentional non-doing. Thus under certain circumstance an omission to act constitute a crime e.g *Art 443(1)Art 575*.

c) Crimes of Commission by Omission

These offences include behaviors which include both positive and negative elements refusal to perform a duty includes a positive expression of ‘unwillingness to act’ expected of him.

Moral Element

- This refers to the moral blame worthiness of the offender. Thus it might be negligent or intentional offences.
- The moral element of a crime is associated with the pp of “*Nulla poena, Sine culpa*” The very principle of this element is provided under Article 57
“....*A person is guilty if, being responsible for his acts; he committed an offence either intentionally or by negligence.*”

Cont.

- The provisions of Arts. 57-67 dealing with ‘Criminal Guilt’ define this moral ingredient i.e. the state of mind of the criminal at the time of committing the unlawful act.
- The same holds true when we come to Art. 20(3) the FDRE constitution which provides that, “accused persons have the right to be presumed innocent until proved guilty”. Therefore, it must, always be established that, “the state of mind of the accused at the time of the commission of crime was of the nature defined in Art. 58 or 59”.

Comparative Overview on Conditions of criminal Liability

- It is to be noted that the legal, Material and moral ingredients of an offence are cumulative conditions of a criminal liability.
- The stipulation here above incorporates
 - ❑ a negative condition of criminal liability, i.e. absence of irresponsibility
 - ❑ a positive conditions of criminal liability, namely the existence of objective conditions of committing a crime (*actus reus*) plus the subjective condition of criminal liability, i.e. *the intention and negligence*(***Mens rea***)

a) Negative Conditions of Criminal Liability

- Under the Ethiopian criminal law there are two categories of negative conditions of criminal liabilities.

1st the accused must be responsible for his act (Art 57(1), Para 2 first parse. This is precisely because irresponsibly (Art 48 to 56) negates the presumption of the accused person's mental capacity and the rationality.

2nd the accused must have acted under circumstances that do not negate the presumption of rationality and Autonomous behavior. Acts that enable the accused to invoke the affirmative defenses such as absolute coercion (Art 71), necessity (Art 75) legitimate defense (Art 78)..etc. can be mentions such instances.

Cont.

Here it is not the duty of the public prosecutor to prove the absence of irresponsibility or the non existence of other affirmative actions.

b) Positive Conditions of Criminal Liability

This refers to the objective and subjective conditions whose existence must be proved on the part of public prosecutor. As stated earlier this refers to the *Actus reus* and *Mens rea*

Dissected Analyses of Ingredients of a Crime

1. Act

An Act involves volitional or willed physical activity and is usually defined as '*willed muscular boldly movement*'.

1.1 Voluntary V Involuntary Acts

Voluntary acts impulses (drives), desire, will etc precede voluntary act. E.g. our day to day habitual activity such as walking, speaking, eating, etc. are voluntary acts.

There are however automatic acts at subconscious level as the case of instinctive(reflexive) response such as defensive body movement.

Cont.

Automatism is more of denial of authorship, a claim that the ordinary link between mind and behavior was absent. Thus in case of automatism is a set of involuntary act of the body rather than acts of the defendant .

1.2 Material Circumstance

Acts or omissions become offences only under particular material or surrounding circumstance. E.g. is a person is accused of adultery, the act should be proved is sexual intercourse, and the material (attendant circumstances) required is married status of the accused.

Causation of Harm

- For the sake of causation of harm offences may be construed as “*offence of conduct*” and “*offences of result*”

Offences of conduct are crimes which are regarded as offence without consequence. E.g. Perjury and Forgery

Offences of omission are punishable irrespective of their result, whereas offences of commission by omission require result.

Offences of result require harm and causal relationship b/n the conduct and the harm ought to be established

Cont.

Art 24 of the criminal law prescribes about the principle of causation.

‘Sine qua non’ cause or ‘But for test’

*“ For Want of a nail the shoe is lost,
For want of a shoe the horse is lost,
For want of a horse the rider is lost,
For want of a rider the message is lost,
For want of a message the battle is is lost,
the war is lost – the fatherland is lost.*

Cont.

- The above poem is written by Benjamin Franklin in 1757,
See Art 24(1) Para 1

In a broader interpretation result achieved may be regarded as the consequences of a certain act or omission if the result event wouldn't have occurred without the act or omission. Such relationship, referred to as '*Sin qua non*' cause. *E.g.* If a person invited to lunch encountered a car accident and dies on his way to the place of invitation even if the victim wouldn't have died had he not been invited to lunch. Here the invitation to the lunch is merely a condition and not cause of the victim's death. Because people under a similar circumstance do not normally encounter death.

Adequate (substantial) cause

In the earlier example, although the invitation was a necessary condition for the death, such an invitation does not in the '*regular course of event*' cause death. To this end, Art 24(1) Para, 2 provides “...*r/ship of the cause and effect shall be presumed to exist when the act or omission ...would in normal course of things produce the result charged*”

Therefore, an act should not only be a necessary condition but should also be *adequate enough* to normally (if not invariably) bring about the harm under consideration.

Extraneous(concurrent, intervening and proceeding) causes

A certain defendant's act or omission need not be the sole cause of harm. Two or more persons may concurrently(simultaneously cause harm to a victim. E.g. 1 a man may be struck by two bullets at the same time. If both shots are independently fatal both acts are said to have jointly caused the harm. even though each cause cannot independently produce the result the two defendants are considered to have jointly caused the harm i.e. the harm. Such causes may be referred as *multiple actual cause*.

Cont.

e.g. 2 A shoot to F in his leg and B also shoot F at the same time in his head. B is to have caused the f's death and A will be liable to bodily injury or attempted murder. *See Art 24(2)*

The same holds true in case *intervening causes* the causes happen one after the other.

Necessary Condition V Contributory Causes

Where harm can be attributed to more than one act or event, the core issue that ought to be addressed is whether the extraneous (i.e. concurrent, intervening or preceding) cause was merle a necessary condition or whether it was a contributory cause to the resultant harm.

Common Forms of ‘States of Mind’

a) Intention

To intend is to have in mind a fixed purpose, to reach a desired objectives. denote the state of mind of a man who not only foresees but also wills the possible consequences of his conduct.

For example, a man throws down another man from a high tower or a man cuts another’s throat, in these cases it is clear that he both foresees the victim’s death and also desires it.

Even in cases of omission, the desire and foresight are the same,

Indirect Intention(Recklessness)

- Intention cannot exist without foresight, but foresight can exist without intention.

Here A man may foresee the possible or even probable consequences of his conduct and yet not desire them to occur. A reckless man thinks

- The event shall not happen, or
- He may not care whether it happens or not.

Nevertheless, in either case he does not desire it to happen and therefore, does not act with the purpose that it shall happen

Forms of “Moral ingredients” Under the Ethiopian Criminal Code. (Arts. 57-59)

- The cardinal principle of criminal liability, as embodied in the maxim ‘*actus non facit reum nisi mens sit rea*,’ is expressed in the sub. Art (1) of Art 57 of the Criminal Code, according to which “no one can be punished for an offence unless ... he commits an crime either intentionally or by negligence”.

1, Direct Criminal Intention

Criminal intention’, constitutes the highest degree of criminal guilt and comprises of two elements in the words of Art. 58. According to Sub-Art. (1) a person intentionally commits a crime who infringes law:

- ❑ With full knowledge and
 - ❑ Intent.

Cont.

Thus the existence of will accompanied by awareness proves criminal intention as per Art. 58/1, Para (a) as has been explained above, in detail. This category of intention is usually referred to as direct intention as there are these distinct characteristics of this form of state of mind:

- ❑ a fixed object,
- ❑ a clear foresight of consequences , and a desire for consequences.

Here, The state of mind of the person is unmistakably directed towards the object and the offender willingly and deliberately brings about the “harmful result”

Cont.

- The terms full knowledge and intent in Article 58 can thus be taken to respectively mean awareness and will.

Indirect Criminal Intention (*Dolus Eventualis*)

This involves awareness and conduct regardless of a possible event of harm it is close to (but not identical with) recklessness in the Anglo-American legal system.

Cont.

As stated under Art 58/1 Para (B) “... he being aware that his act may cause illegal and punishable consequences commits the act regardless that such consequences may follow”.

In this state of mind, the criminal does not desire the occurrence of the harm. However, he is aware of the possible consequences and yet is unwilling to renounce his act since he has some other object in his mind.

In other words, though the criminal does not desire, he accepts the occurrence of possible harm in order to achieve his own object.

Cont.

- To illustrate, if a driver, who is eager to avoid being late for an appointment, drives rashly exceeding the appropriate speed with an intention to reach his destination in time. Here for sure he could foresee the possibility of hitting a pedestrian on an overcrowded street, accepts the possible harm but still he proceeds with his course of conduct consciously taking the risk. Here indirect intention is said to exist in case he causes bodily injury, death or damage to property. In ‘indirect intention’, the offender does not foresee the harm as a certainty (or near certainty) but only as a possibility.

Criminal Negligence Art. 59

- “Criminal Negligence” constitutes criminal guilt of a lower degree. Where criminal intention must be excluded on the ground that the conditions laid down in Art. 58 are not fulfilled the question arises as to whether negligence is present.
- ‘Negligence’ is another form of mens rea. Culpable negligence is a condition for criminal liability. Negligence is not taking care where there is a duty to take care. In negligence, there is a state of mind in which there is absence of desire to cause a particular consequence. The standard of care established by law is that of a reasonable man in identical circumstances.

Cont.

- A careful consideration of these essential elements of negligence reveals two kinds of negligence.
- Advertent (conscious) Negligence.
- Inadvertent (unconscious) Negligence

Advertent Negligence :(Meaning and Distinction from Indirect Intention :)

Acting in disregard of possible consequences defines conscious type of negligence. In this form of negligence the criminal, like in the case of in direct intention, foresees the possibility of some harm but disregards (or rejects) its occurrence.

Cont.

- Under indirect intention the criminal accepts the occurrence of the possible harm whereas in the advertent negligence the person rejects the possibility of the harm which in fact materializes as a result of his negligence.
- Philippe Graven, gives the following illustration to clarify the point. 'A' is driving a car and 'B' his passenger, points to him that he drives too fast and might hit someone, to which the driver replies 'you needn't worry, I am a good driver' ...

Inadvertent Negligence: Meaning and Distinction from Advertent Negligence:

- Acting without consideration represents the unconscious type of negligence. Under inadvertent negligence the accused is not aware of a possible harm. The offender does not foresee the result at all. For example, the accused believing that the gun is unloaded pulls the trigger and to his surprise finds some one injured.
- Here, It cannot possibly be a case of pure accident since he is handling a deadly weapon, which requires the exercise of care and caution on his part.

Accident

- Art. 57 (2) of the Criminal Code of FDRE provides:
- *“No one can be convicted under criminal law for an act penalized by law if it was performed or occurred without there being any guilt on his part, or was caused by force majeure, or occurred by accident.”*

Meaning of Accident:

- **Stephen** observes, “An effect is said to be an accident when the act by which it is caused is not done with intention of causing it and when its occurrence as a consequence of such act is not so probable that a person of ordinary prudence ought under the circumstance in which it is done, to take reasonable precaution against it.”

Corporate Criminal Responsibility

Offences by juridical persons (Art 34, 513, 716, 777..) do not require moral guilt(Art 23/3) because bodies incorporated by law are not capable of having awareness and volition.

Thus the criminal liability of juridical persons arise from occupational activities of managers and employees as in cases of strict liability and vicarious under the law of torts.

UNIT-V
DEGREES IN THE COMMISSION OF
CRIME

Different Stages in commission of Crime

- Arts. 26-30 lay down the principles relating to the liability of offenders in various stages of commission of the crime.
- The material element of the crime may result in a completed or incomplete offence.
- The burning issue, therefore, is what degree should be reached in the carrying out of the criminal design in order to regard a person as having fulfilled the material element of the crime.

5.1 Preparatory Act

- Criminal law punishes “overt acts” and not mere intentions.
- Preparatory acts are in principle not punishable. Because they are incomplete offenses’ by which the potential offender capable of renouncing his/her criminal intent.
- There are two situations where *preparatory acts* are punishable.

Cont.

- **1. Where the Preparatory Acts Constitute a Crime in Themselves (Art 26/a):**

A person who buys a gun as a preparatory step towards homicide is punished for the completed “petty offence” of retaining a gun without license (Arts. 808, 809) even though he is not punishable for his preparatory act; the act of keeping a gun without a license itself is a petty offence.

Cont.

2. Where the Preparatory Acts Constitute a “Special Crime” by Owing to Their Gravity (Art 26/b):

- Certain preparatory acts are expressly constituted a special crime by law owing to their gravity or the general danger they necessarily bring upon the society. For example, material preparation of offences against the state (Art. 256, 257), preparing a mutiny or seditious movement (Art. 300) and preparing machinery and means of counterfeiting currency (Art. 371) are expressly stated to constitute special crimes.

Cont.

The reasons why preparations are not punished are fourfold, namely:

- a) A preparation apart from its motive is generally an harmless act;
- b) It would be impossible in most cases to show that preparation was directly towards a wrongful end or was done with an evil motive or intent. Therefore, if mere preparations were punishable it would cause unnecessary harassment to innocent persons as there is a *locus poenitentiae*, and the doer may have changed his mind;

Cont.

c) It is not the policy of law to create and multiply crimes. If preparations were to be punished, innumerable crimes will have to be created;

d) A mere preparation does not and cannot ordinarily affect the sense of security of the individual to the wronged, nor would the Society be disturbed or alarmed as to rouse its sense of vengeance.

1.2 Attempt:

- attempt includes three most important requirements to exist that include: intent, overt act, and failure to achieve the result.
- One thing must be mentioned here that a person can be liable for attempted offence when such offence is punishable upon intentional state of mind. For example if Abebe negligently causes bodily harm upon Kebede, he cannot be said to have attempted to kill him.

Kinds Of Attempt

- Basing on the ‘reason’ for the failure to achieve the intended result attempts can be classified into three categories:

1, Incomplete Attempt

The words “... do not pursue ... his criminal activity to its end” in Article 27 define “incomplete attempts” because of voluntary withdrawal. The part of the provision that reads, “... or is unable to pursue his criminal activity to its end”, on the other hand, indicates an incomplete attempt because of external interventions, that is outside the volition or will of the accused. For example, an accused aims at a person, touches the trigger and then changes his mind is said to have voluntarily withdrawn.

Cont.

- Article 28/1 gives due credit to an offender who renounces the pursuit of his criminal activity by allowing reduced punishment (Art. 179), free mitigation (Art. 180) “if circumstances so justify” or no punishment “if the renunciation was prompted by honesty and high motives”.
- In cases where the withdrawal occurs due to external circumstances, the non pursuance of criminal activity is involuntary.

2. Complete Attempt

- An attempt is said to be complete when the wrongdoer has performed everything on his/her part, which is considered to be necessary without, however, result having achieved.
- This category of attempt includes impossible offence.
- Attempt could also be made to achieve the result due to the active involvement of the perpetrator him/herself. This is known as active repentance.

Cont.

- Complete attempts may take the forms of voluntary undoing or involuntary failure to achieve the result.
- E.g. If a criminal having poisoned a victim with a dosage sufficient to cause death, regrets and voluntarily takes him to hospital there by enabling complete recovery, the criminal has apparently “undone” the effects of what he had done. Such an “active repentance” (Art. 28/2) enables courts to reduce punishment without restriction (Art 180).

Cont.

- Involuntary failure to achieve intended result occurs upon missing a target, abortion of result or impossibility of achievement as specified in Art 29.

3. “Impossible Attempt” Art. 29:

Article 29 covers the cases of absolute impossibility and not relative impossibility where the circumstances in which the criminal acted are unable to cause the criminal’s intended harm due to the means used or because of the object against which the act is committed.

Cont.

E.g. 1, absolute Impossibility

- ☐ Failure to achieve result because of an unloaded gun is an absolute impossibility due to the means used.
- ☐ If a doctor attempts abortion over a woman who is not pregnant, there is absolute impossibility due to the missing object

E.g. 2, Relative Impossibility

- ☐ Poisoning a person with an insufficiently fatal poison is a case of relative impossibility due to insufficient means.
- ☐ If the attempted abortion fails because the woman is conditioned to a particular drug, the doctors attempt is said to be relatively.

***Mens rea* in Attempts:**

- The mental element assumes paramount importance in attempts, because sometimes *actus reus* may be a perfectly innocent and harmless act, for example 'D' intending to murder 'P', puts sugar in his tea, believing that it is Arsenic the act is absolutely harmless. His 'Object' failed only because of his mistaken appreciation of the material circumstances. Therefore, without establishing his guilty intention it is impossible to make him liable for an attempt.

Identification Of The Stage Of Attempt:

1. Reasonable inference Test

- Based on this test If the only reasonable inference that can be drawn from the overt acts of the accused is that he would have completed the crime had he not been interrupted, then there can be no doubt that he is guilty of an attempt to commit a crime”.
- To constitute an attempt, the act must be such as to clearly and unequivocally indicate the intention to commit the crime.

2.The Commencement of Execution Test

- According to this test an act amounts to the beginning of execution when the intention behind it is irrevocable. The doer should, therefore, go beyond what might be called the ***point of no return***. The execution of the crime includes the doing of an act, which in the criminal's plan amounts to a decisive step towards the achievement of the result, after the taking of which there is normally no possibility of drawing back.

Cont.

- The Ethiopian Criminal Code defines attempt in Art. 27/1 Para 1, as the intentional act of beginning to commit a crime and thus has much in common with the “commencement of execution test”. The second paragraph of the provision states what is meant by the act of beginning to commit as offence. It reads “*The crime is deemed to be begun when the act performed clearly aim, by way of direct consequence, at its commission*”.

3. Proximity Test

- An act of attempt must be sufficiently proximate to the crime intended, it should not be remotely leading towards the commission of a crime.

E.g. A fires at Z, but misses the mark for want of skill or due to some defect in the gun, since the act of A could not bring the desired effect, say death of ‘ Z’, A could not be held liable for murder.

Thus according to this test person commits the offence of attempt to commit a particular crime when:

1. He intends to commit that offence, and
2. He having made preparations and with the intention to commit the offence does an act towards its commission.

***Locus poenitentiae* Test**

- The Latin term ‘locus poenitentiae’ means ‘place of repentance’.i.e. a point at which it is not too late for one to change one’s legal position; the possibility of withdrawing from a contemplated course of action, esp. a wrong, before being committed to it.
- Here the possibility of repentance serves as a point of reference whether the crime of attempt exist or not.

5. Social Danger Test

- The seriousness of the crime attempted and the apprehension of the social danger involved is taken into account to distinguish an act of ‘attempt’ from that of ‘preparation’.

Cont.

E.g. ‘A’, gives some pills to a pregnant woman to procure abortion, but it had no effect because the drug turned out to be innocuous. ‘A’, would be guilty of attempt to cause miscarriage since the acts of such kind would cause an alarm to society and will have social repercussions.

Renunciation And Active Repentance

1. Renunciation

Renunciation is provided under Article 28 of the Penal Code as “if an offender of his own free will renounce the pursuit of his criminal activity the court shall reduce the punishment within the limits provided by law (Art. 179) or may reduce it without restriction (Art. 180) if circumstances so justify.

❑ No punishment shall be imposed if the renunciation was prompted by reasons of honesty or high motives.

2. Active repentance

- The failure to achieve the result after the completion of the act may also occur when, after having performed all the acts to bring about the desired result, the perpetrator himself either prevents or contributes for the prevention of the result.
- This is what is called active repentance which is dealt with under Article 28(2) of Cr.c
- If an offender, having completed his or her criminal activity, of his or her own free will prevents, or contributes to prevent the consequent result, the court may without restriction reduce the punishment (Art. 180).

UNIT- VI

**PARTICIPATION IN THE
COMMISSION OF CRIME**

Introduction

- A crime can be committed by several persons who participate in the commission of a crime at different or same capacities. It is therefore important to determine the degree of involvement and the role played by such persons in the commission of the crime.

Section.1. Participation In Principal Capacity

- As stated under Art 32 in Ethiopia, principal participation is defined broadly that it takes the forms of material, moral and indirect offenders.

1. Material Criminal

- This form of participation is dealt with under Article 32(1) (a) of the Criminal Code.

E.g. A person is a material criminal in a crime of homicide if he or she takes the life of another. Such form of principal criminal can commit the offence either directly or indirectly. he is the material Criminal as he personally commits the crime.

- It could also be indirect when the perpetrator commits the crime by using instruments like animals or natural force.

Cont.

- Thus, when one man beats a victim and another stabs him with a knife, both are material criminals in the murder.
- It is also possible for a person to be regarded as a material criminal if he or she negligently performs an act and produces a forbidden harm. E.g. when two cars collide and killed a pedestrian through negligent state of mind which constitute criminal offence as provided under Art 543.

2 Moral Criminal:

- Moral Criminal is a person who fully associates himself/herself with the commission of the crime and takes the crime as his or her own even though he or she is not present at the time when and the place where the crime was committed.
- Moral criminal is a person who plays no part physically in the commission or omission of the offence. Persons who involve in the commission of the crime in such a way are considered to be working brains or master minded.

Cont.

- He/she just takes part in the process by designing plans, providing means, facilitating everything necessary for the commission of the offence, as it is dealt with under Article 32(1) (b) of the Criminal Code.

3. Indirect Criminal

- This form of principal party is contained under Article 32(1) (c) of the Criminal Code and refers to these persons:-

Cont.

1. Compel another to commit a crime. This is the case when Tariku, under a gun point orders Fekadu to cause bodily injury upon.
2. Employ mentally deficient persons in the course of the execution of a crime.
3. Use an irresponsible person that can come under Articles 48-50.
4. Use infants who are immature persons as provided under Article 52.
5. Use another person by taking the advantage of his or her mistake or ignorance as per Articles 80 and 81 of the Criminal code.

4. Co-Criminals

- The Ethiopian Criminal Code, define co-criminals broadly so as to include all principal parties who involve in the commission of the crime either as a material criminal, moral criminal or indirect criminal.
- Accordingly, co-criminals are dealt with under Article 32 and 33 of the Criminal Code of Ethiopia as “where several co-criminal are involved, they shall be liable to the same punishment as provided by law (32/3)”.

Cont.

- From these Articles, it is possible to envisage that co-criminals are those persons who participate in a crime in their principal capacity either as a material or moral or indirect parties.

☐ Co-Criminals with Conspiracy

☐ Co-Criminals without Conspiracy

4.1. Co-Criminals in general Crimes and special Crimes

Persons may also be categorized as co-criminals in general crimes and special crimes.

Cont.

- Several persons may be considered as co-criminals in crimes in general when the crime in question can be committed by any one. This relates to homicide, theft, robbery, bodily injury and so on.
- Persons are co-criminals in special crimes when the crime in question requires special qualification. Art 33 of the criminal code stipulates this scenario. Such crimes are desertion (Art 288) Rape (Art 620) Adultery (Art 652), incest (Art 654) Corruption (Art 408) and so on.

Cont.

- All other people who do not have the above respective qualifications cannot commit the respective crimes materially. But they can be held liable criminally being considered as co-criminals in a crime in their principal capacity either as moral or indirect parties in accordance with Article 33 of the Criminal Code.

Section.2. Participation In The Secondary Capacity

This refers to the involvement of persons in the commission of a crime in the second degree.

Cont.

- A person is not considered to be principal criminal as his participation in this case is less than the principal criminals. This relates to *incitement* or *complicity*, which are also called accessories either before or during the commission of the crime.

2.1. Incitement

This form of participation is secondary before the commission of the crime. It is dealt with under Article 36 of the Criminal Code.

The legal effect of being an instigator:

- The instigator will be liable to punishment under the law for the intended crime. This is the case for instance that a person who incited the commission of the crime of robbery will be liable under Article 36/670.
- **What if the *incited* goes beyond the intention of the instigator?**

Art

36/4

The principal offender is punished alone for what goes beyond the intention of the instigator. This is the case that the incitee /principal/ criminal is alone liable for the rape he committed while he was persuaded to commit robbery.

2.2. Complicity

- It is also a secondary participation which may exist either before or during the commission of the offence as provided under Article 37 of the Criminal Code.

What are the legal effects of complicity? The following are the legal effects of complicity:

1. The accomplice is liable for the punishment under the law regulating the intended crime.
2. The accomplice will not be liable for what goes beyond his intention.
3. Punishment may, however, be reduced within the limits of the law as per Article 179 of the criminal code

2.3. Criminal Conspiracy

- Conspiracy is defined as an agreement between two or more persons to effect something unlawful.
- In the Ethiopian law, conspiracy, as a rule, is *not* considered to be an independent crime. Rather, it is a ground for aggravating punishment when persons participate in the commission of a crime based on prior agreement as per Article 38(1) of the Criminal Code of Ethiopia.

Cont.

- Though our law disregards the act of conspiracy as an independent crime, Article 38(2) provides exceptions that it is taken as an independent crime as stated under Arts 257, 274, 300 and 478.

Participation Of Juridical Persons In A Crime

- Juridical person is defined under Art. 34(4) of the Criminal Code of FDRE as:
“.....a body which has governmental or non governmental, public or private structure and includes any legally recognized institution or association set up for commercial, industrial, political, religious or any other purpose.”

Cont.

- Article 34 of the Revised Criminal Code of FDRE states:
“A juridical person other than administrative bodies of state is punishable as a principal criminal, an instigator or an accomplice where it is expressly provided by law.”

Accessories After The Fact:Art.40

- Accessory refers to a person who gives assistance to the principal criminal after the realization of the crime. The form of assistance may be, hiding and aiding the criminal as per Article 445 of the Criminal Code: under the topic Harboring and aiding

What are the legal effects of being accessory after the fact

- An assistance given to the criminal after the commission of the crime is independent crime.

UNIT-VII

CRIMINAL RESPONSIBILITY

General Defenses

- Defenses for criminal liability are circumstances that relieve an accused from conviction of guilt and its consequent penalty.

Criminal Responsibility and Irresponsibility

- Responsibility is a person's mental fitness to answer in a court for his/her action. Persons are criminally liable only if they are responsible for their acts.
- Responsibility or irresponsibility is concerned with the criminals' awareness and their capabilities to control their action.

Cont.

- Therefore, before ascertaining that the criminals have committed the crime intentionally or by negligence, it is necessary to assure the responsibility or irresponsibility of the criminals.
- Irresponsibility may arise in three cases. With regards to adults, it may arise from ***insanity*** or ***intoxication***, and with regards to ***infants***, it may arise from their immaturity.

Cont.

- Responsibility is Presumed By the Court.

1.1. Absolute Irresponsibility: Art. 48

- No person is liable to punishment unless he is found responsible for his acts (Art. 48). Rather the fulfillment of the requirement as to responsibility is a condition precedent to the fulfillment of the requirement as to guilt.
- This is to mean that no person may be convicted of an offence unless, at the time of commission, he was not irresponsible for his acts.

Cont.

- Responsibility could not be defined in a positive, but only in a negative manner, and this is why most codes including the Ethiopian Criminal Code (2005) do not describe responsible but irresponsible persons.

1.1.1. Insanity

- Insanity is a complete defense to a criminal charge. It is based on the assumption that one who is insane has no mind and hence cannot have the necessary mens rea to commit a crime. The act of an insane man, being unintentional and involuntary, no punishment can deter it.

Cont.

- according to medical science, is a disease of the mind, which impairs the mental faculty (cognitive faculty) of man.
- The laws, which the Criminal Code of Ethiopia provides regarding defense of insanity, are found in Article 48. As elaborated earlier in this section, our law do not describe responsible, but irresponsible person.

Cont.

Essential Conditions to Establish the Defense of Insanity

- Art. 48(2) requires the proof of the defense of irresponsibility i.e. the incapacity of the defendant to form a guilty intention basing on the following important things.

1. Nature of the incapacity: That the accuses is incapable of understanding the nature or consequences of his act or of regulating his conduct according to such understanding,

Cont.

2. Reason of the incapacity: That such incapacity is due to age, illness, abnormal delay in his development or deterioration of his mental faculties, (one of the causes specified under Art. 49 (1) i.e. a derangement or an abnormal or deficient condition).

3. Time of the incapacity: That such incapacity exists at the time of his act that produced the consequences in question.

Cont.

- There are three principal methods of defining criminal responsibility, namely: The biological method, the psychological method and the bio-psychological method.
- The three methods differ on factors that deem to be the source of irresponsibility.
- And according to the bio-psychological method, followed in many modern Codes including the Criminal Code of Ethiopia, a person is regarded as irresponsible only if, at the time of the commission of the crime, he was deprived of his mental faculties in consequence of certain biological defects.

Cont.

- In other words there must be a causal relation between the biological defect, which the offender suffers, and the psychological failure as a result of which the person become incapable to understanding his acts.

Legal Effects of Criminal Irresponsibility:

The legal effects of criminal irresponsibility are of two kinds. other is that an irresponsible person incurs no liability since, according to sub-art. (1), —the criminal who is responsible for his acts alone liable to punishment.

Cont.

- On the other hand the law required the court to ensure the irresponsible person will not be any more a menace for others. Therefore, sub-art. 3 authorizes the court to make orders under Arts. 129-131, whenever these measures are necessary for the treatment of the offender or the protection of the public or both.

Limited Responsibility: Art. 49

- between insanity and sanity, there exists intermediary stages where an offenders faculties are affected to such an extent that, although he is certainly able to understand what he does and to act accordingly, it is equally certain that his intelligence or will-power is not that of a —normal person and that his degree of guilt is consequently lesser than that of such a person.
- Such a person may neither be relieved of liability, since he is not fully irresponsible, nor should he be liable to a full punishment, since he is not fully responsible.

Characteristics of Limited Responsibility

- It was believed that some biological diseases or defects are less serious to cause absolute irresponsibility. Accordingly it was proposed that the biological causes of limited responsibility described under Art. 49, stated as a derangement of the mind or understanding (e.g. hysteria), an arrested mental development (e.g. imbecility) and an abnormal or deficient condition (e.g. alcoholic intoxication) do not have the effects specified under Art. 48

Legal Effects of Limited Responsibility:

- Like that of irresponsibility, the legal effects of limited responsibility are of two kinds:
- 1. The accused is liable to punishment since he was not irresponsible at the time of the act and he is capable of understanding the meaning and purpose of punishment; however, the penalty must be reduced because the offender's responsibility, and consequently his degree of guilt, is reduced.

2. Intoxication-Intentional or Culpable Irresponsibility: Art. 50

- Drug addiction and alcoholism remain two of the foremost-unsolved problems confronting the criminal justice system of many countries.

2.1 Voluntary and Involuntary Intoxication:

- Involuntary intoxication, for example, because of prescription medication or coercion can constitute a defense.
- The defense of drunkenness and its legal effects in Ethiopia is prescribed under Art. 50.

- The defense of drunkenness and its legal effects in Ethiopia is prescribed under Art. 50 and the discussion are followed here after. The provision is chiefly intended for persons who with some state of mind contravene the law while under voluntary influence of alcohol or drugs or any other means. It is based on the rule that intoxication is no defense if caused by the offenders' voluntary act.

- Art.491 is based on the assumption that anyone who intoxicates himself is always a latent menace for others and that he is punishable as soon as he creates a concrete danger, i.e. he commits an offence.

3. Infancy/Immaturity: Art. 52

- The principle that an infant is incapable of distinguishing between right and wrong and so no criminal responsibility could be fastened in regard to his deeds.

- Children of such age are granted absolute immunity on the ground that they are *doli inapax*, that is, incapable of doing a criminal act, because a child under such age group cannot form the necessary intention to commit a crime.

Infancy under Ethiopian Law:

- According to Art.52 of the Ethiopian Criminal Code, infants are completely exonerated from criminal provisions. The lower limit of penal majority is made nine years under this article.

Classification of Young offenders under the Code

- Immaturity refers to inability to appreciate the nature and consequences of an act due to early age. It includes infancy, young criminal and persons in the transitory age.

1. Infancy

Infancy is the period extending from birth to what might be called criminal majority.

In our country, infancy ends at the attainment of ninth year (article 52). The infants who have not attained the age of nine years are exonerated from criminal liability.

2. Young Persons

- Young persons are persons whose age is between nine and fifteen (article 53(1)). Young persons do not enjoy complete immunity from criminal liability. They are considered responsible for their acts.
- The court may not treat young persons in the same manner as it does adults. The court orders the penalties and measures provided under article 157-168 rather than the punishments provided under the special part of the Criminal Code.

3. Transitory Age

- The criminal responsibility and guilt of persons between the age of fifteen and eighteen years are determined as though they were an adult, but the punishment that may be ordered is not necessary that which would be ordered if they were adults.

As a result, the court has three options.

- First, it may order any of the penalties applicable to adults and mitigate it according to article 179. However, the mitigation is not compulsory.

Cont.

In such case, the court may not sentence the criminal to death penalty.

- Secondary, the court may order one of the special penalties applicable to young persons. Finally, the court may order special measures applicable to young criminals based on the conditions laid down under article 177.

Assessment of Sentence in Case of Young offenders:

- Art. 55 provides some guidelines, that the court has to follow in assessing the sentence regarding young offenders.

Cont.

- The court may impose penalties on young criminals. These penalties as provided under article 166-168, are of two kinds. These are fine and imprisonment. The court may not sentence a young criminal to fine or imprisonment unless the measures applied under article 158-162 have been applied and failed.

UNIT-VIII

AFFIRMATIVE DEFENSES

General Consideration on Affirmative Defenses

- Not all persons who have violated a criminal law provision are punishable sometimes a person may not be punished or may be subject to reduced punishment though he has committed a crime. This usually occurs where there are justifiable or excusable circumstances which are often referred as affirmative defense.
- An “affirmative defense” is any defense that assume the charges to be correct but raises other facts that, if true, would establish valid justification, or excuse to perform the act for which he is being tried.

Cont.

- This assertion is in consonant with Article 58(2) of the FDRE Criminal Code which goes “an intentional crime is always punishable save in the cases of justification or excuses expressly provided by the law”.

Types of Affirmative Defenses

Generally speaking, affirmative defenses can be classified into two depending on to what issue/point the defense is addressed.

Cont.

- Some affirmative defenses speak to the rightfulness of the act done by the doer; these defenses are commonly referred as justification. On the other hand, there are other affirmative defenses which address that the actor is not criminally responsible in the circumstances. These defenses are usually termed as excuse.

1. Justification

- In this category of defense, the defendant accepts responsibility for the crime but what he did was right under the circumstance.

Cont.

- Justified conduct does not deserve punishment because such behavior lacks blame worthiness.

2 Excuse

In cases of excuse, the doer admits that what he did was wrong but argues that under the circumstance he was not responsible for what he did and should be excused for so doing.

- Thus, where a defense operates as an excuse the criminal responsibility of the accused is negated and he is excused from the normal consequences of conviction and sentencing which would flow from the commission of the crime.

Cont.

- Coming to the FDRE Criminal Code, affirmative defenses are classified into three; namely lawful acts, justifiable acts and excusable acts.
- Based on the explanation given above regarding justification, it is sound to hold that justifiable acts and lawful acts could be treated under justification. Because the theme of these two defenses is basically the same, i.e. the act, which otherwise be a crime, done by the accused is not unlawful.

a. Lawful Acts

- One of the affirmative defenses provided in the FDRE Criminal Code is lawful acts.
- This defense aims at deleting the unlawful character of the act done by the doer.
- It intends to convince the court that the act performed by the accused, which would otherwise be criminal, is lawful owing to the fact that he is legally obliged or authorized to act as he did in the circumstance.
- Thus, his act does not constitute a crime irrespective of the seriousness of its nature.

Cont.

- The FDRE Criminal Code has provided, under Article 68 and 69, acts that should be regarded as defense of lawful act.

1 Acts required or Authorized by Law

- Thus, acts, which would be otherwise be criminal, are lawful and not punishable when they are performed by a person who is required or entitled to perform them. *See Art 68*

2 Acts done in exercising professional duty

Acts done in exercising a professional duty fall under defense of lawful acts and as such serve as a defense to criminal liability. See Art 69

As it can be read from this provision, a doer is not to be punished for an act he has done in carrying out his professional duty unless his act is contrary to the accepted practice of the profession and he commits grave professional fault

3 Justifiable Acts

- As it has been pointed out earlier on, a person who invokes an affirmative defense claiming that his act is justifiable in circumstance admits the commission of the act but denies the punishable nature of his act. This kind of defense is regarded as defense of justifiable acts.
- In criminal law jurisprudence the most common types of justifiable acts are acts of legitimate defense, acts of necessity and consent of the injured party.

Cont.

- When we come to FDRE Criminal Code, the law does not clearly state which acts constitute defense of justifiable rather it provides for different circumstance, which can be regarded as justification and excuse under the title “justifiable acts and excuses”.
- the reading of Article 70,75 and 78 of he FDRE Criminal Code respectively, indicate that consent of the victim, acts of necessity and acts of legitimate defense are provided and can be regarded as defense of justifiable acts under FDRE Criminal Code.

1 Legitimate Defense

- Legitimate defense refers to the use of force to prevent unlawful attacks against individuals, their homes, property and the right of another person. It involves self-help in effect it is a good example of “the taking the law into one’s own hands”.
- To put it simply, legitimate defense all about protective action required and taken right now. Preemptive strikes come too soon and retaliation comes too late. Thus, individuals must opt for other means to prevent future attacks, and only the state can legally punish past attacks.

Cont.

- Regarding legitimate defense it is stated under Article 78 of FDRE CC. *The FDRE Criminal Code uses the term “legitimate defense”, instead of self defense,*

Elements of Legitimate Defense

1. Actual attack or imminent attack

- An act of legitimate defense is to be exercised is against an attack which must be actual or at least imminent in the sense that his act should not amount to preemptive strike or retaliation.

Cont.

2) Against legally protected rights

3) Last resort

- The fulfillment of the aforementioned requirements is not sufficient enough to warrant use of force to repulse an actual or imminent unlawful attack against a legally protected right. An act of legitimate defense is to be exercised as a last resort.

4) Proportionality

2 Excess in Legitimate Defense

- A person will remain criminally liable when he exceeds the limits of legitimate defense. (*See*, art 79)

2 Defense of Necessity

- Generally speaking defense of necessity presupposes the choice of evils. This defense justifies choosing to do lesser evil in order to avoid greater evil. The choice of the lesser evil must be both imminent and necessary.
- Defense of necessity under the Ethiopian cc is stated under Art 75

Cont.

- From the reading of the first aliena of Article 75, we can identify two conditions that should be satisfied in order to avail oneself of defense of necessity.
- The ***first*** condition is that there must truly exist a state of necessity. That is to say there should be a situation in which a choice has to be made between conflicting legitimate interests.
- The ***second*** condition is that the conflict between these legitimate interests may not be resolved by any other means than causing harm.

Cont.

Requirements of defense of necessity

- i. True state of necessity
- ii. Last resort
- iii. Proportionality

In fact the requirement of proportionality is not mentioned under Article 75 of the FDRE Criminal Code; but the close reading of Article 76, specifically, the wording “if the abandonment of threatened right could reasonably have been required” reveals that proportionality is also one of the conditions that should be complied with in order to successfully invoke defense of necessity

Excess of Necessity

- Article 76 of the FDRE Criminal Code tells us that under certain circumstances an act done in state of necessity may entail criminal liability. Here goes Article 76.
- As per the reading of Art 76 we can identify three scenarios wherein a person who does a criminal act in a state of necessity may not be justified under Article 75 of the FDRE Criminal Code, i.e., defense of necessity.

Cont.

- ***Firstly***, a person may not be justified in causing harm to another person's interest where abandonment of the threatened right is reasonably required in the circumstances of a particular case.
- ***Secondary***, the defense of necessity is not available where the actor exceeds what is necessary to avoid an imminent and serious danger.
- ***Thirdly***, a person may not avail defense of necessity in order to be exempted from criminal punishment where by his own fault he finds himself in a state of necessity.

3 Military state of Necessity

- As provided under Art 77(1) an act, which would otherwise be criminal, done by a superior military officer is justifiable when the following requirements are met.

Firstly, there should be a situation where in a military discipline or obedience is endangered. This may happen in time of mutiny or in a war like situation in the face of enemy.

Secondly, the doing of the act should be the only way to secure obedience or discipline.

Thirdly, such a high ranking officer should be in active service.

Cont.

□ How do you Reconcile Art 77 & 68 of the FDRE criminal Law

4 Defense of Consent of Victim

The defense of consent of the victim is based on the value of individual autonomy and one of its offshoots that individuals should be able to waive their rights.

There are three theories by which the defense of consent of the victim may be dictated.

1. Relatively Protected Rights

- According to this theory, consent of the victim can be invoked as a defense only where the act committed by the doer causes harm to legally protected interests the violation of which punishable upon the compliant of the victim in contrast to “absolutely protected rights” the infringements up on which are punishable by accusation, i.e. without compliant.
- Here, what matters is whether the crime committed by the doer is punishable up on compliant or by accusation.

2. Crime of Predominantly, Private Nature Theory

- This provides that the consent of the injured party can serve as a defense, where the legally protected interest which is infringed by the act of the doer is most importantly of a private nature.
- The question as to when consent of the victim justifies the actor should be decided taking into account the nature of the legally protected interests infringed by his act rather than based the fact that the crime is punishable with or without compliant.

3. Purpose of Harm Theory

According to this theory, consent may justify the doer where the purpose of the harm which he causes to the victim is not morally reprehensible

For instance, if Ato Kebede asks Ato Shumie to remove a thorn from his foot and Ato Shumie subsequently makes an incision in Ato Kebede's foot with a knife, taking into account the purpose of the harm Ato Shumie shall not be criminally held liable to punishment for causing a grave bodily injury to Ato Kebede.

Cont.

- Art 70 of the FDRE Criminal Code has recognized the consent of the victim as an affirmative defense to a criminal liability.

From the reading of sub-article 1 of Article 70, one may tend to conclude that the FDRE Criminal Code has adopted the “the relatively protected right” theory in dealing with consent of the victim as a defense to criminal liability.

- According to Article 212 of the FDRE Criminal Code a criminal proceeding may not be instituted against the doer unless a formal complaint is lodged by the victim himself or his legal representative.

Cont.

- On the other hand, the reading of sub-Article 2 of Article 70, tend to imply that the FDRE Criminal Code has also considered “the purpose of harm” theory. As it has been provided under Article 573 (2) taking away an organ or a part of the body of another with latter’s consent with a view to obtain money is punishable. Here the consent of the victim may not be raised as a defense because of the commercial nature of the purpose for which the harm is caused to the victim.

2. Excusable Acts

- Generally speaking an act may be regarded as excusable when it is committed under irresistible coercion, superior order, or in state of insanity or of intoxication.
- When we come to the Ethiopian law, as it has been indicated earlier, the FDRE Criminal Code does not expressly state which acts are excusable. Nevertheless the close reading of Articles 72, 74, and 80 reveals that an act done under absolute coercion, perhaps under superior order or owing to mistake of fact respectively can be regarded as excusable acts.

2.1 Absolute Coercion

According to Art 71, a person who is compelled by another person to commit a crime may not be punished when the coercion exercised on him is absolute that he could not possibly resist and the harm that he causes by doing the act is not greater than he could have suffered had he not submitted to the coercion. From this, we can infer two requirements.

Cont.

- i.** The actor must be under an absolute irresistible coercion.
- ii.** The harm to be caused by doing the act must not be greater than would have been suffered by the actor had he not submitted to coercion.

The point that should be raised here is how the existence of an absolute coercion is to be determined?

Cont.

The circumstances that should be considered by the court in determining whether the doer has acted under absolute coercion or not include the degree and nature of the coercion, the personal circumstances and the relationship of strength, age or dependency existing between the person on whom coercion is exercised and the person who exercised it.

2.2 Resistible Coercion

- Resistible coercion refers to a coercion of such a degree that the coerced person is reasonably expected to resist it or avoid committing the act
- In this regard Article 72 of the FDRE Criminal Code clearly states that If the coercion was not irresistible and the person coerced was in a position to resist it or avoid committing the act, the court shall pass sentence on the criminal.

2.3 Defense of Superior Order

- First, as provided under Art 73 the issue of superior order is only to be considered with respect to orders given by administrative or military superiors not by any other superior.
- Secondly, the superior should have the competence or mandate to give orders.
- Thirdly, the order should be given expressly.

How far the duty of obedience of subordinate should go?

Cont.

- In this regard there are three systems by which we can explain how far the duty to obey a superior goes.

1. Blind or Passive Obedience System

According to this system the duty of the subordinate to obey the order of the superior is absolute. In this system respect for an order is the same as respect for the law.

As Graven pointed out, in a blind obedience system “the subordinate who carries out an unlawful order is justified by the fact that he is legally bound to act because, so far as he is concerned, the order is law.”

The intelligent bayonets or infantry is system

- According to this system, the subordinate is under obligation to carry out orders he knows to be lawful. He has to ascertain the lawfulness of the orders before executing them. If a subordinate knowingly carries out an unlawful order, he will be answerable for his act.
- Therefore, according to this system superior order can not serve as a defense for the subordinate is only bound to carry out orders which are ascertained to be lawful.

3. The Manifest is Illegality system (Obedience and Independence System)

- The third system is the middle-of-the-road position of the above two systems which tries reconcile the legal and factual requirements by combining obedience and independence.
- Here the subordinate is bound to obey orders of his superior in as much as they are not manifestly unlawful in form and content.

When to the Ethiopian context article 74(1) provides that, the subordinate will be liable to punishment where he carries out a superior order knowing its illegal nature.

Cont.

- From the reading of this provision one normally tends to think that the FDRE Criminal Code has adopted the manifest illegality system in determining the responsibility of the subordinate who carries out unlawful order.
- From what has been stated above, it follows that a subordinate should be relieved from any criminal liability where he was not aware of the illegality of the order. In such cases superior order will serve as a complete defense to a criminal liability.

2.4 Mistake of Fact & Mistake of Law

- Mistake or ignorance of fact can serve as a defense if it negates the state of mind (*mens rea*) required for the crime. The mistake or ignorance must be both honest and reasonable.
- Mistake is not mere forgetfulness. It is a slip-made, not by design, but by mischance. Under Art.80, a mistake must be one of fact and not of law.

Cont.

- A legal provision, is not a fact and Art.80 is inapplicable, when the doer is mistaken as to the legal consequences of an act which he does (with a clear knowledge of the facts of the case and correctly appreciated by him). ***For example***, he has sexual intercourse with a woman whom he has known to be married but believes that the legal consequences of the act is in this case is that she only commits an offence, or he has sexual intercourse with a girl whom he has known that she is aged seventeen but he believes by the law.

Schools of Law Regarding the Rule of Ignorance of Law is No Excuse

a) The first school supports the general rule: that states - Ignorance of Law is no Excuse.‖

This presumption will make the courts free from ascertaining whether the offender knows his act is contrary to the law or not which is almost impossible.

b) The second school supports an exception to the general rule and states: —Ignorance of Law May be an Excuse in Certain Circumstances‖

According to this school of thought, the maxim —ignorance of law is not an excuse‖ It is not acceptable on the following grounds

Cont.

(1) The complexities of modern life and the consequent increase in the volume of laws, makes it completely impossible for anyone to know the laws, be it be the laws of his own country, let alone to understand them.

(2) It is inconsistent with the principle - ***nulla poena sine culpa*** (no penalty without intentional guilty) upon which so many modern codes, including Ethiopian criminal code, are based.

The Ethiopian Law on Mistake and Ignorance of Law

- According to Art.81 (20) of the criminal code ignorance of law is not excuse but the court may reduce the punishment applicable to a person who in good faith believes that he has a right to act and has definite and adequate reasons for holding this erroneous belief.
- Again Art.81 (3) states that in exceptional cases of absolute and justifiable ignorance and good faith and where criminal intent is not apparent, the court may impose no punishment. This stand of the criminal code shows that it stands in a half way between the two schools of thought discussed above.

Cont.

- It stands in a half way in such a manner that the Ethiopian penal law may reduce the punishment or a one who is in good faith believed that he had a right to act and had definite and adequate reasons for holding this erroneous belief and may not punish a person who out of absolute and justifiable ignorance and good faith and without criminal intent commits a crime.
- Accordingly, the following conditions are stipulated as a condition to apply Art.81.

Cont.

A. When there is Good Faith.

B. When The Accused Is Not At Fault/No Criminal Intent

UNIT X

**CRIMINAL PUNISHMENT AND ITS
APPLICATION**

Introduction

- Once a person is found guilty of the crime he/she is accused of, the next thing to do for the court is to pass sentence and penalty that it deems appropriate for the crime committed.
- The court takes many things into consideration before passing the sentence because punishment is a very decisive step on the life, liberty and property rights of the accused.
- Punishment in all its forms is a loss of rights or advantages consequent on a breach of law. When it loses this quality it degenerates into an arbitrary act of violence that can produce nothing but bad social effects.||

SENTENCING STRUCTURE

- Sentences are structured based on the organ which determines the exact punishment. Depending on by whom the punishment will be individualized, there are three structures of sentencing. These are:
 - ❑ Legislative fixed model
 - ❑ Judicial fixed model
 - ❑ Administrative fixed model

Cont.

- Thus broadly speaking punishment is the response of the society to socially dangerous behavior. It is intended to make the offender no more dangerous to the integrity of the society.
- Therefore, What is the purpose of punishment?

Purpose of Punishment

- i. Retribution
- ii. Deterrence
 - a) General deterrence
 - b) specific Deterance

Cont.

iii. Prevention/Incapacitation

iv. Reformation /Rehabilitations:

V. The Integrative view

Purposes of Punishment under the Criminal Code of 2004

Art 1 Para 2 of the FDRE cc Stipulates a general statement regarding the aims and objectives of the criminal code. Further, the purposes of deterrence, prevention, reformation and rehabilitation are specifically mentioned in the provisions relating to different types of punishments. Let us see some of them:

Cont.

- ❑ Art. 87 The Criminal Punishment And Its Application- Principle.
- ❑ Article. 107: Substitution of Compulsory Labour for Simple Imprisonment.
- ❑ Article. 108 Rigorous Imprisonment.
- Art. 190 Conditional Suspension of Penalty

Principles of determination of punishment

- There are two main principles which help to avoid arbitrariness in imposing punishment. They should be strictly complied with in assessing punishment / sentence.

I. The Principle of legality

- As per this principle, courts are not allowed to punish a convicted person going beyond the maximum or the minimum on unless otherwise expressly provided by the law.

II. The principle of individualization

- Before prescribing the proper form of punishment the physical, social, educational or cultural make-up of the perpetrator should be studied so as to design a punishment that suits him perfectly and to achieve the specific objectives of criminal justice.

Cont.

Types of Punishment

- Based on their nature three categories of punishments can be perceived as mentioned in Articles 90-156:

- | | | |
|------|---------------------------------------|-----------|
| I. | Principal | penalties |
| II. | Secondary | penalties |
| III. | Special measures applicable to Adults | |

I. Principal Penalties

Principal penalties can be put under the following heads:

- ❑ Pecuniary Penalties-art. (90-102.)
- ❑ Punishments Restricting or Depriving Liberty (Art. 103-116)
- ❑ Death Penalty (Art. 117-120)

I. Pecuniary Penalties-art. (90-102)

A. Rules Governing Fine: Arts. 90 -97

- Under criminal law fine may be defined as, —a pecuniary criminal punishment payable to the public treasury.

In case the Criminal is a Natural Person:

- The degree of guilt.
- His/her financial condition
- His/her family responsibilities
- The amount of fine, in normal cases, may extend from 10 birr to 10,000 birr. This amount is subject to any provisions or law to the contrary.

In case the Criminal is a Juridical Person

- Where a juridical person such as a corporation is convicted of a crime punishable by only imprisonment it shall be converted in to fine in the following way(*See Art 90(3)*)

B. Confiscation of Property: Art.98

Confiscation‘ means, - appropriation of private property to the public treasury by way of penalty. But there are some personal premises which are exempted from confiscation.

C. Sequestration of property: Art 99

Sequestration[‘], is a legal process consisting of temporary deprivation of a person or his property, until the claims on such property are settled or to make him to do or abstain from doing an act within a specified time.

D. Forfeiture

Forfeiture refers to the seizure of any material benefits given or intended to be given to a criminal to commit a crime or any fruits of a crime. According to Article 100 of the FDRE Criminal Code courts are duly required to order that material benefits awarded or intended to be awarded to a criminal to induce him to commit the crime be forfeited to the state.

II. Punishments Restricting or Depriving Liberty (Art. 103-116)

- Imprisonment can be classified into two depending on the time of imprisonment and the conditions of imprisonment. These are:
 - ❑ Simple imprisonment (Art 106-108)
 - ❑ Rigorous imprisonment (Art 108)

a) Simple Imprisonment

As it can be understood, from the reading of the above provision, simple imprisonment is to be imposed on criminals who are not dangerous to the society and commits a less serious crime.

Cont.

- The duration of the sentence may extend from ten days to three years. However, where it is expressly mentioned by the provision defining the crime, where the criminal commits concurrent crimes punishable with simple imprisonment or where he has been punished repeatedly, the duration of simple imprisonment may extend to five years.

b) Rigorous Imprisonment

On the other hand, rigorous imprisonment is to be imposed on criminals who have committed crimes of a very grave nature and who are dangerous to the society.

Provisions Common for both Simple and Rigorous Imprisonments

- Articles 109-116 lay down the following provisions which are commonly applicable to both forms of imprisonment:
- (Arts. 87, 108). The enforcement of imprisonment shall be for the achievement of these objectives.

The following aspects of enforcement of imprisonment shall be provided by the prison regulations.

- ☐ The manner of execution of sentences,
- ☐ The admission to prison,
- ☐ The segregation for prisoners,
- ☐ The contact of prisoners with persons outside.
- ☐ The interval discipline in the prison, and
- ☐ For the education and spiritual welfare of the prisoner.

Suspension of penalties

- Where the circumstance justifies that the criminal will get better reformed by not punishing him, either the pronouncement of the sentence or the execution of the sentence may be suspended by the court.
- Penalties can be conditionally suspended in two ways as per Article 191 and 192 of the FDRE Criminal Code.
- Conditional suspension of sentence may not be allowed as per Article 194(3) and also may be reviewed by the court which granted it, according to Article 194(2). Further, as stated under Art 192(2) the court shall fix period of probation.

Conditional Release

- A person who condemned to serve the maximum period of simple or rigorous imprisonment may be conditionally released without serving the full sentence. Conditional release of the convicted may be granted with a view to reform him where he shows a reasonable and progressive behavioral change.
- Articles 113 and 201 of the FDRE Criminal Code have laid down the principle by which a convict can be conditionally released before he has fully served the sentence. The preconditions for release of a person on probation are provided under Article 202(1) of the FDRE Criminal Code.

Cont.

- Where a prisoner has served two-thirds of a sentence of imprisonment or twenty years in case of life imprisonment, the court may, on the recommendation of the management of the institution or on the petition of the criminal, order conditional release:

3. Penalty affecting the life of the criminal.

- This is state imposed death as punishment for a serious crime and is also termed "capital punishment".
- Capital punishment is generally resorted to in case of serious crimes like homicide.

Methods of Executing Capital Punishment

- Beheading, Electric Chair, Firing Squad, Guillotine, Hanging, Lethal Injection, Poison Gas & Stoning.

Capital Punishment in Ethiopia(Art 117-120)

- In this regard Article 117 of the FDRE Criminal Code has stipulated the following conditions for the capital punishment.
 - ☐The crime must be grave
 - ☐The criminal must be exceptionally dangerous
 - ☐It must be specifically stated by law that the punishment for such completed crime is death.
 - ☐There must not be extenuating circumstances
 - ☐The criminal must have attained the age of 18 at the commission of the crime.

Cont.

- Death sentence shall be carried out only after obtaining confirmation of the same by the Head of the State.
- It shall be executed only after ascertaining of its non-remission or non-commutation by pardon or amnesty.
- The means of execution shall be determined by the executive body having authority over the Federal or the Regional Prison Administration concerned.

Cont.

- The death sentence shall not be carried out in public by hanging or by any other inhuman means.
- It shall be executed within the precincts of the prison by a humane means. The execution of the sentence shall be carried out without any cruelties, mutilations or other physical suffering.
- The body of the executed person shall be given to his family, upon their request. If no one claims for the body, it shall be given a decent burial (Art. 117 (4)).

Suspension and Commutation of Death Sentence:

Suspension and commutation of death penalty are possible in the following circumstances:

- ☐ In case of fully or partially irresponsible or seriously ill persons or a pregnant woman.
- ☐ The death sentence may be commuted to —Rigorous Imprisonment for Life, in case of a woman with child and if she gives birth to a live child.
- ☐ The other cases of sentences of death may be commuted or remitted only by way of pardon or amnesty as provided by the Arts. 229 and 230 of the Criminal Code.

2. Secondary Penalties

- A court may impose a secondary penalty on a criminal in addition to the primary punishment. However they may replace the principal penalty under the conditions stated by the provision of article 122(2).
 - ❑ If such is specifically laid down by the law; or
 - ❑ Where there are extenuating circumstances; or
 - ❑ Where the law provides for a free mitigation of the punishment (article 82 & 83); or
 - ❑ Where enforcement of the sentence is postponed.

Types of Secondary Penalties

- There are different types of secondary penalties.
These are:

A. Caution, Reprimand, Admonishment (Article 122):

B. Deprivation of rights (Art.123)

(This may take the form of depriving civil rights, family rights, professional rights)

3. Special Measures Applicable to Adults

- Our law does not only penalize a criminal but it also has designed protective measures specially to achieve reformative and rehabilitator purposes. For this purpose the law has come up with three categories of measures.
- a) Measures applicable Irresponsible persons and criminals with limited responsibility.**
- For a person to be punished for a crime he should be responsible i.e. there should be no irresponsibility. However, there will be protective measures to be imposed on such persons.

Cont.

- According to articles 130(1), if a criminal is found to be a threat to public safety or order or if he proves to be dangerous to the persons living with him, the court shall order his confinement in a suitable institution.
- Further if the criminal is suffering from any health and intoxication related deficiencies persist to exist Art 131 the court may order to the treatment of the criminal in hospital of other suitable places.

Measures Applicable to Young Persons

- As you could remember, young persons refer to persons who are between the ages of nine and fifteen.
- The FDRE Criminal Code has provide different measures that may be imposed on a young criminal. These include the following.
 - A. Admission to curative institution
 - B. Supervised education
 - C. Reprimand
 - D. Schoole or Home Arrest

General Measures for purposes of prevention and protection

- These kinds of measures are applicable together with principal punishment when the particular circumstances of the case warrant them in the eyes of the court.

1. Measures of a material nature

☐ Guarantee of Good Conduct

(the court might request for a bond with surety to guarantee the good conduct of the criminal or potential offender)

☐ Measures Entailing Restriction on Activities

3. Determination Of Punishment

3.1. General Principles of Determination of Punishment: Arts. 87-89:

- The punishment that will be imposed on a given criminal can be aggravated or mitigated depending on the particular circumstances of the case.

3.1.1 Eventuating Circumstances

The age, education, knowledge, character, health, economic position and motive of the criminal can be taken as extenuating circumstances. Furthermore, the existence of provocation or impulsive situations can be regarded as examples of extenuating circumstances.

Purpose of Extenuating Circumstances

- The very purpose of extenuating circumstances is to individualize the degree of quality of each and every criminal and to impose penalty according to their degree of quality.

3.1.3 Determination of extenuating circumstances

- There are two methods by which the existence of extenuating circumstances to be determined.
 - ☐ System of judicial circumstances
 - ☐ System of legal circumstances

Cont.

- The reading of Article 82 and 83 of the FDRE Criminal Code reveals that courts are to be guided by detailed list of circumstances mentioned therein. Therefore the FDRE criminal law follows the system of legal circumstances.

3.1.4 Classification of extenuating circumstances

Extenuating circumstances can be classified into two categories. These are:

- General extenuating circumstances
- Special extenuating circumstances

Cont.

- The FDRE Criminal Code upholds this classification of extenuating circumstances. Accordingly, it provides for general extenuating circumstances under Article 82 and special extenuating circumstances under Article 83.
- Article 82(1) enumerates a number of factors that may lead the court to mitigate the penalty to be imposed on a criminal. These factors can be categorized into material (external), personal (internal) and mixed circumstances. Alternatively, they can be classified into circumstances, which preceding, accompany or follow the commission of the crime.

Cont.

- Having the above remarks in mind, it is worth discussing some of these factors enumerated under Article 82(1) of the FDRE Criminal Code.
- i) Circumstances that relate to the mind or knowledge the criminal.**
- As per Article 82(1) (a), the previous good character of the criminal will be regarded as an extenuating circumstance where the criminal has committed the crime due to lack of intelligence, simplicity of mind or ignorance.

ii) High Motive

- Pursuant to Article 82(1)(b) the penalty to be imposed on a criminal, who was prompted by high motives, may be reduced.
- In order to serve as extenuating ground, the motive must be high by the standard of the society and not necessarily by that of the criminal. These high motives of the criminal may relate to his religious, moral or civil conviction or any other honorable and disinterested motive.

iii) Factors relating to circumstances preceding the commission of the crime.

a) Moral or Material Distress

- Pursuant to Article 82(1)(c) of the FDRE Criminal Code, the penalty to be imposed on a person who has committed a crime in a state of great material or moral distress may be reduced/mitigated. Material distress refers to a painful or unpleasant situation or suffering from want or need. It may occur because of poverty, unemployment and other economic necessities. E.g. See Art 634

Cont.

- Moral distress, on the other hand, refers to a strain such as shame, sorrow, fear, anxiety, sadness etc. For example, if a woman who is pregnant procured her own abortion, she will be liable to punishment as per Article 546 of the FDRE Criminal Code. But the punishment to be imposed on her may be reduced taken in to account her moral distress.

b) Threat

The punishment to be imposed on a criminal may be reduced where he commits the crime under apprehension of a grave threat or justified fear, by virtue of Article 82(1)(c) of FDRE Criminal Code

c) Reverential fear

- A punishment to be imposed on a criminal may be reduced where he commits the crime under the influence of a person whom he owes obedience or upon whom he depends.

d) Temptation

e) Provocation

f. Violent emotion

iv. Sincere repentance

3.1.4.1 Assessment of penalties in cases of general extenuating circumstances

- The manner by which courts reduces punishment in such cases is provided under Article 179 of the FDRE Criminal Code.
- The cumulative reading of Article 82(1) and 179 of the FDRE Criminal Code envisages that the court shall reduce the penalty, where mitigation is justified, in a manner provided under Article 179. This mitigation is described as ordinary mitigation by the FDRE Criminal Code.

Cont.

- Courts are empowered to apply ordinary mitigation where one of the circumstances mentioned under Article 82(1) is present and the court is convinced that mitigation is justified in the circumstance.
- Where mitigation is justified because of the existence of general extenuating, the court is not allowed freely reduce the penalty. Rather, it shall be reduced the penalty pursuant to Article 179 of the FRDE Criminal Code.

Cont.

- However, mitigation under Article 82 and 179 of the FDRE Criminal Code must not result in double reduction on the same extenuating ground.(See Art 82(2)). **E.g.**

As provided under Art 541(b) of the cc. an offender might commit eventuated homicide following provoked and having violent emotion which are general, extenuating circumstances under Article 82(1), are constituent elements of extenuated homicide. Thus the court is not allowed to mitigate the punishment to be imposed on the offender.

3.1.4.4 Special Extenuating circumstances(Art 180)

- Special extenuating circumstances are different from general extenuating circumstances in two ways. **Firstly**, unlike general extenuating may not be invoked by any criminal. **Secondly**, unlike general extenuating circumstances, special extenuating circumstances result in unlimited mitigation of penalty.
- The court is required to mitigate the penalty without restriction, where the following conditions are met. **First**, the criminal must have committed the crime with a view to spare himself, a relative by blood or marriage from prosecution, punishment, dishonor or grave injury.

Cont.

- Secondly, the criminal must have committed only, crimes against administration of justice. These kinds of crimes presuppose that a person shall report the commission of a crime and assist the authorities in apprehending, interrogating and enforcing the sentence even if the criminal is his relative or his close fiend.

3.3.2 Aggravating circumstances

- Aggravating circumstance refers to factors that are relevant to the perpetration of a crime which indicate the degree of guilt and dangerous disposition of the criminal warranting an increase in the penalty to be imposed on such a criminal.

Classification of aggravating circumstances

As it is the case in extenuating circumstances, aggravating circumstances are classified into two. These are:

- ☐ General aggravating circumstances
- ☐ Special aggravating circumstances

Cont.

- General aggravating circumstance refers to factors which the court may increase the penalty in all kind of crimes. These factors are believed to demonstrate the dangerous dispositions the criminal similar with extenuating circumstances, aggravating circumstance may be of a material or personal nature or could be the combination of the two. They may also be divided into circumstances preceding or accompanying but not subsequent, the commission of the crime.

Cont.

- Special aggravating circumstances refer to cases of recidivism and concurrence.
- Criminals treated under special aggravating circumstances are more dangerous than those treated under general aggravating circumstances.

General aggravating circumstances

- It has been pointed out earlier on general aggravating circumstance are those circumstances based on which the court may aggravate the penalty in all types of crimes.

Cont.

- The provision of Article 84 (1) enumerates a number of ground of general aggravating circumstances based on which courts may aggravate the penalty to be imposed on a criminal.

i. Treachery

- Treachery refers to betrayal of one's trust.

ii. Base motives

- Envy, hatred, and greed are provided as examples of base motives which may justify the aggravation of penalty. (See Art 84(1))

Cont.

iii. Deliberate intent to do wrong

iv. Cruelty

v. Abuse of power

vi. Antecedents

vii. Habitual or Professional nature of the crime

viii. The time and circumstances of the commission of the crime

ix. Criminal agreement

x. Victims deserving special protection

Assessment of penalties in the case of general aggravating circumstances

- when any one of those general aggravating circumstances enumerated under Article 84 (1) (a) – (e) is present and the court believed that the circumstance shows the dangerous disposition of the criminal, the penalty must be increased in a manner provided under Article 183 of the FDRE Criminal Code.
- Pursuant to Article 84 (2) of the FDRE Criminal Code, double aggravation of penalty prohibited. E.g. in case of aggravated robbery (Art 671(1)) such penalty is prohibited.

Special Aggravating Circumstances(Art 85)

- In contrast to general aggravating circumstances are applicable to all forms of crimes, special aggravating circumstances are applicable to **concurrent** crimes and **recidivism**.
- With respect to legal effect, the general aggravating circumstances allows increment of punishment up to the maximum limit provided by the law defining those particular crimes. Whereas, special aggravating circumstances permits the increment of the penalty beyond the maximum limit set by the law defining those particular crimes.

i) Concurrence

- Concurrence refers to the case where a criminal by one or several acts commits more than one crime. Concurrence crimes are of two kinds. These are *material concurrence* and *notional concurrence*.

a) Material concurrence

- Article 60(1)(a) of the FDRE Criminal Code has described material concurrence as a case where the criminal successively commits two or more similar or different crimes irrespective of their nature.

b) Notional Concurrence

- Pursuant to Article 60(1)(b) of the FDRE Criminal Code, notional concurrent refers to cases “when the same criminal act simultaneously contravenes several criminal provisions or results in crimes with various material consequences.” Accordingly, notional concurrence occurs in two situations.
- One is when the same criminal act violates different legal provisions as envisaged under Article 65 of the FDRE Criminal Code. For instances, if a person rapes his daughter, he simultaneously violates Article 620(1) which prohibits crime of rape and Article 654 which prohibits incest

Cont.

- The other form of notional concurrence occurs where the same criminal act violates two or more legal provision by causing various material consequences as described under Article 66 of the FDRE Criminal Code.

ii) Recidivism

- Recidivism is the second type of special aggravating circumstance under FDRE Criminal Code.
- Pursuant to Article 67 of the FDRE Criminal Code at least three conditions should be fulfilled to regard a person as recidivist.

Cont.

- A sentence must have been imposed on him and served in whole in part or remitted
- A new crime must be committed within five years after the previous sentence have been fully or partially served or remitted
- The fresh crime committed must be punishable for not less than six months imprisonment.

Assessment of punishment in cases of special aggravating circumstances

A. Aggravation of punishment in cases of material concurrence

- Where a person has committed material concurrent crimes, the punishment to be imposed on him is to be aggravated in a manner provided under Article 184 the FDRE Criminal Code.
- Article 184(a) paragraph one provides absorption method of aggravation. According to this provision if a death sentence or life imprisonment is imposed on the criminal on account of one of the concurrent crimes, no other sentence will be passed with respect to the other concurrent crimes.

Cont.

- For example, A is convicted of aggravated homicide and rape. If the court imposes on him death penalty or life imprisonment for the homicide, no punishment will be imposed on him regarding his crime of rape. This is with the assumption that the death or the life imprisonment to which the criminal is condemned, absorbs or override the penalty for the rape.
- Similarly, the court may not impose penalty with respect to other concurrent crimes punishable with same kind of imprisonment, where it imposes the general maximum provided by the general part of the Criminal Code.

Cont.

- In both cases, however, it should be noted that nothing will affect the power of the court to impose fine and order forfeiture of the property of the criminal in addition to sentencing the criminal to death, life imprisonment or imposing the general maximum imprisonment fixed under Article 106 and 108.
- When we come to Article 184(1)(a) paragraph two it provides for cumulative or aggregate method of aggravation.

Cont.

- For instance, in the illustration given above, if the court, instead of twenty five years rigorous imprisonment, imposes 20 years for with respect to the robbery, the court can add to this penalty, the imprisonment appropriate for the crime of rape until it reaches twenty five years.
- Coming to Article 184(1)(b), it also provides for cumulative aggravation of punishment. In cases of two or more concurrent crimes entailing loss of liberty, the penalty appropriate to each concurrent crime shall be determined and aggregated.

Cont.

- How is the penalty to be aggregated where concurrent crimes entail simple imprisonment and rigorous imprisonment?
- Second alienea of Article 184(1)(b), provided that simple imprisonment of two years shall be regarded as one year rigorous imprisonment in aggregating the penalty where the respective concurrent crimes entail simple imprisonment and rigorous imprisonment.

Cont.

- Second alienea of Article 184(1)(b), provided that simple imprisonment of two years shall be regarded as one year rigorous imprisonment in aggregating the penalty where the respective concurrent crimes entail simple imprisonment and rigorous imprisonment.
- Article 184(1)(d) deals with how penalty shall be fixed in cases where the concurrent crimes are punishable with fine.
- However, Article 184(1)(e) prohibits the court from imposing fine when it orders the forfeiture of the criminal's property on account of one of the concurrent crimes.

B. Aggravation of punishment in cases of notional concurrence

- Article 187 of the FDRE Criminal Code provides for aggravation of penalty in cases of notional concurrence by making a distinction between cases where the criminal contravenes two or more criminal provision by the same act simultaneously, and cases where the criminal brings about various material consequences by the same act.

Cont.

- The provision of Article 187 of the FDRE Criminal Code deals with aggravation of punishment in cases of notional concurrence in two ways pursuant to Article 187(1), the court, as a matter of principle, is empowered to impose the maximum penalty prescribed for the most serious crime where the criminal contravenes two or more criminal provisions by one and the same act. ***E.g. adultery in public places***
- However, as a matter of exception, the court may aggravate the penalty pursuant to Article 184 of the FDRE Criminal Code where the criminal's deliberate and calculated disregard for the law or the dangerous disposition of the criminal warrants the aggravation. ***E.g. Mr. Jonas rapes his daughter***

Cont.

- Pursuant to Article 187(2)(a), the penalty shall be aggravated in accordance with provision of Article 184 where at least one of the concurrent crimes committed by the criminal is intentional.
- On the other hand, pursuant to Article 187 (2) (b), where the concurrent crimes are committed negligently, the court may not impose a penalty more than the maximum penalty prescribed for the most serious crime.

C) Aggravation of punishment in cases of assimilated cases of concurrence

- Article 60 of the FDRE Criminal Code states that a person shall also be deemed to have committed a concurrent crime where a criminal act which, though flowing from the same criminal intention or negligence and violating the same criminal provision, causes the same harm against the right, or rights or interest of more than one person. The penalty to be imposed on such criminal is to be determined as per 184 (2) of the FDRE Criminal Code. According to this provision, the penalty to be imposed shall be aggravated as per Article 184 unless otherwise provided.
- ***For instance***, A intentionally, runs over B and C by his car causing B's and C's death.

d. Aggravation of punishment in cases of recidivism

- The aggravation of penalty in cases of recidivism is to be made in accordance with Article 188.
- Pursuant to Art 188(1) the court can increase the penalty to the extent of twice of the penalty prescribed by the Special Part of the Code for the fresh crime or for the most serious crime in case of concurrent. In doing so, however, the court may not impose a penalty exceeding the two fold of the maximum penalty prescribed by the relevant provision defining the fresh crime or the general maximum fixed under Article 106 or 108 as the case may be.

Cont.

- ***E.g.*** A, who has been sentenced to serve ten years rigorous imprisonment for committing crime of rape, is convicted for crime of robbery which he had committed within a month after he has served his term. In this case, the court can increase the penalty exceeding the penalty prescribed for robbery, i.e., fifteen years rigorous imprisonment. It can increase the penalty to the extent of two fold of the penalty prescribed for the fresh crime by the Special Part of the Code without exceeding the general maximum fixed for rigorous imprisonment. Thus, here the court can increase the penalty to the extent of twenty-five years rigorous imprisonment.

Cont.

- Under Article 188(2), however, the court can aggravate the penalty even exceeding two fold of the maximum penalty prescribed by the special part of the code for the fresh crime where the nature and multiplicity of crimes and the dangerous disposition of the criminal justifies such aggravation or the criminal is a persistent recidivist. However, even in such cases, the court may not exceed the general maximum fixed by the General Part of the Code.

Other general extenuating and aggravations circumstances

- From the reading of Art 86 FDRE cc we can infer that courts are empowered to consider other circumstances than those expressly provided by the Criminal Code as extenuating or aggravating circumstance. In that case, the court what is required from the court is to state its reason for taking a certain circumstance, which is not expressly provided by law, as aggravating or extenuating factor.

Cumulation of extenuating and aggravating circumstances

- *How are courts going to assess penalty in cases where both extenuating and aggravating circumstances are present together in a particular case?*
- As it can be understood from the reading of Article 189(1) and (3), where there are aggravating and extenuating circumstances, courts are required to fix the penalty first based on the aggravating circumstances and then reduce the penalty in light of the extenuating circumstances.

Cont.

- Furthermore, courts are instructed by Article 189(2), where the criminal is recidivist and has committed concurrent crimes, to fix first the penalty for the concurrent crimes and then increase the penalty in light of the recidivism.

Post Conviction Processes

1. Suspension of Penalty and Conditional Release:

1.A Suspension of Penalty

- Suspension of Pronouncement of Penalty, Art. 191
- Suspension of Enforcement of Penalty, Art. 192

1.A Conditional Release: Art. 201

- This provision may be applied in all cases where a penalty or measure resulting in loss of liberty' is imposed. Conditional release also is base on the consideration that it serves as a means of reform and social reinstatement.

Period of Probation Art. 204:

- Normally the period of probation may be a minimum of two years and may extend up to a maximum of five years, subject to any provisions to the contrary. However, in case of criminal sentenced to life imprisonment the minimum is five years and the maximum is seven years.

2. Pardon and Amnesty

- Pardon may be defined as —the act or instance of officially nullifying punishment or other legal consequences of crime. The chief executive of a government usually grants a pardon. The president has the sole power to issue pardons.
- Amnesty is also a species of pardon but applies to a certain class of criminals and specific type of crimes only. Amnesty means, -a pardon extended by the government to a group or class of persons usually for a political offense; the act of a sovereign power officially forgiving certain classes of persons who are subject to trial but have not yet been convicted.

Cont.

- Unlike an ordinary pardon, amnesty is usually addressed to crimes against state sovereignty i.e. to political offences with respect to which forgiveness is deemed more expedient for the public welfare than prosecution and punishment. Amnesty is usually general, addressed to classes or even communities, which is also termed as general pardon.
- Articles. 229 and 230 of the Criminal Code deal with the concepts of Pardon and Amnesty.

Differences between Pardon and Amnesty:

- Pardon is remittance of penalty while amnesty is a general pardon especially for political crimes against government.
- In pardon, the remission of sentence may be whole or in part and in amnesty, it is always complete remission.
- Pardon may completely remit the penalty or commute the same to a penalty of lesser nature or gravity.
- Pardon may apply to all penalties and measures whether principal or secondary. But amnesty may be granted in respect to certain crimes and certain classes of criminals only.

Cont.

- The order of pardon may determine the conditions to which it is subjected to and its scope. Amnesty may be either absolute or subject to certain conditions and obligations.

UNIT XI

SPECIAL PART OF PENAL CODE

Introduction

- The special Part systematically arranges the crimes affecting different interests in a logical order.
- Therefore, the law that protects the interests of the State is of utmost priority in criminal law. The crimes that affect the general interests of the community occupy the next place in the Criminal Code. The crimes against the public order, morality, public health etc are found in the second place. The crimes affecting the life, personal liberty, property, marriage and honor of an individual fall in the subsequent sections of the Criminal Code. Finally, the offences of petty nature are incorporated in the Petty Code.

The Relationship of the General and Special Parts:

- To establish the commission of a crime it is very important to understand the interrelationship between the general and special parts of the Code.
- The General Part of the Criminal Code sets out the general principles of criminal liability which are common to all crimes.
- This part explains the meaning of criminal act, criminal intention or negligence i.e. the guilt and lays down the principles following which an accused's act can be declared punishable.

Cont.

- Further, the general part prescribes and defines the kinds of punishments and measures to be applied in each case. The concepts like probation, suspension of sentences, periods of limitation for prosecution as well as enforcement of punishment and conditions relating to pardon and amnesty are clearly provided for in the general part. All these provisions are commonly applicable to all crimes and are essential for two important purposes of a criminal trial.

Cont.

- Each of the prohibited conduct is given a specific name, for example, homicide, theft, robbery, adultery etc., and the material and moral ingredients essential for the commission of such crimes are laid down clearly in those articles defining crimes.

Finding the Relevant Law

Interrelationships of Provisions

Understanding the interrelationship of provisions gives us an idea about the order in which different provisions relating to crimes are arranged in the code and this further simplifies our efforts to find the relevant law.

Cont.

In every section of the Special Part we will find the crimes being arranged in the following order:

- ❑ The principle relating to the crime Aggravated forms of the crime
- ❑ Ordinary or simple form of the crime
- ❑ Extenuated form of the crime
- ❑ Negligent commission of the crime, in any.
- Thus, we find that the crimes are arranged in an order starting for more serious forms to less serious forms.
For example:

Cont.

Book-V

Title-I Crimes Against Life, Person and Health

Chapter-I Crimes Against Life

Section-I Homicide and It's Forms

Art. 538- Principle

- Art. 539- Aggravated Homicide
Art. 540- Ordinary Homicide
Art. 541- Extenuated Homicide
Art. 542- Instigating or Aiding another to Commit Suicide Art.
543- Homicide by Negligence
- All through the Special Part of the Criminal Code we find this kind of systematic organization of the provisions which helps the easy identification of the provision we need to consult in a given case.

Cross-References within the Code

- This is another organizational feature of the Criminal Code of Ethiopia. In the Code we find a certain article referring to other articles. We find this on two different occasions.

1. To Find Complete Picture of Crime or a Concept

E.g. See Art 38(1) Conspiracy

2. Where one provision serves in some respect as a general article to a series of articles:

A general rule applicable to a series of provisions may be laid down in an article which makes it important to consult that article whenever we deal with any of such provisions it refers to. *E.g. See Art 628 It might be difficult in case of Concurrent Offences.*

Crimes against the State

1. Treason and Its Kind

TREASON (Fr. *trahison*, Lat. *traditio*), a general term for the crime of attacking the safety of a sovereign state or its head.

Misprision of Treason

It is committed by someone who knows a treason is being or is about to be committed but does not report it to a proper authority. It is therefore unusual in that it is a criminal offence which may be committed through inaction.

Petty treason

- Petty Treason was, in English common law, any betrayal of a superior by a subordinate. It differed from the better-known high treason in that high treason can only be committed against the sovereign.
- Petty treason was essentially an aggravated form of murder. It consists a wife killing her husband, a man (whether a priest or not) killing his prelate, or a servant killing his master or mistress.

Treason under Criminal Code of Ethiopia

- Articles 248-250 of the Criminal Code of Ethiopia define three types of treasons namely, ***high treason***, ***treason*** and ***economic treason***.

1. High Treason (Art 248-250)

High treason is criminal disloyalty to one's country. High treason is also called as an act of war' as the acts included under the definition of high treason are essentially linked with situations related to war.

Punishment for High Treason:

1. Rigorous imprisonment from 5-25 years is the normal penalty for high treason.
2. Life imprisonment or death penalty may be awarded in cases of high treason of exceptional gravity.

2.Treason Art 249

Punishment for Treason:

There are three alternative penalties suggested for treason under Art 249 having regard to the seriousness of the consequences:

1. Rigorous imprisonment not exceeding 15 years is the normal sentence prescribed for the crime.
2. Rigorous imprisonment from 10 to 25 years, in cases of exceptional gravity directly endangering the existence or independence of the State.
3. Simple imprisonment for not less than six months to five years rigorous imprisonment:

2.Economic Treason: Art 250

- Unauthorized disclosures and communications relating to economic negotiations of the State are prohibited under this provision.

Punishment for Economic Treason:

Article 250 provides for different penalties for intentional or negligent commission of the economic treason in the following way:

- Rigorous imprisonment not exceeding 10 years, in normal cases.
- Rigorous imprisonment extending up to 20 years, in more serious cases.
- Simple imprisonment of not less than three months, in negligent cases.

2. Espionage: 252

- Espionage is the practice of obtaining information about an organization or a society that is considered secret or confidential (*spying*) without the permission of the holder of the information.

Punishment for Espionage

Once the crime of espionage is established, Art 252 of the Criminal Code proposes five different types of sentences depending on the serious nature of consequences.

Cont.

- **Death Penalty**, where the vital interests of Ethiopia are at stake.
- **Rigorous imprisonment for life**, in cases of exceptional gravity, and especially in the case of, political, diplomatic or military espionage carried out in the time of war or danger of war.
- **Rigorous imprisonment not exceeding 20 years**, where the information divulged, is calculated directly to endanger the internal or external security of the State.
- **Rigorous imprisonment not exceeding 10 years**, where the espionage is harmful to the State or to the public interest.
- **Rigorous imprisonment not exceeding 5 years**, Where the espionage is harmful to private persons or undertakings.

Crimes Against life:

- The concept of a right to life is central to debates on the issues of capital punishment, euthanasia, self defense, abortion and war. The right to life is enshrined in Article 3 of the United Nations' Universal Declaration of Human Rights and in Article 6 of the International Covenant on Civil and Political Rights, making it a legally enforceable right in every United Nations member state:
- *Right to Life Under the Constitution and the Constitutionality of the „Death Penalty“ I Assignment.*

A. Homicide-Meaning of the Term

1. Justifiable Homicide

2. Excusable Homicide

3. Criminal or Culpable Homicide

3.a. First Degree Criminal Homicide (Murder)

This crime is distinguishable a mental state of "purposely" which is having three (3) elements: *(a) premeditated -- meaning fixed or obsessed; (b) deliberate -- meaning "cool"; and (c) malicious -- meaning scheming or clever.*

Cont.

3.b. Second Degree Criminal Homicide (Murder)

3.c. Voluntarily Manslaughter

3.d. Involuntary Manslaughter

Homicide and its Forms Under The Criminal Code of Ethiopia: Arts- 538-544

The general principle relating to the crime of homicide is incorporated in Art 538 of the Criminal Code. Accordingly

- Causing death of a human being by weapons or means whatsoever
- Such death should have been caused with intention or by negligence

1. Intentional Homicide

- Under the Criminal Code there are three kinds of homicides that require the proof of intention as the moral ingredient of the crime, namely *Aggravated Homicide (Art 539)*, *Extenuated Homicide (Art 541)* and *Ordinary Homicide (Art 540)*.

A. Aggravated Homicide (Art 539)

B. Extenuated Homicide: Art 541

- Within the meaning of Art 541 the following circumstances make the homicide an extenuated one.

Cont.

- ❑ Causing death intentionally by exceeding the limits of necessity (Art 75), or
- ❑ Causing death intentionally by exceeding the limits of legitimate defense (Art 78), or
- ❑ Causing death intentionally following gross provocation, or ***(BWS, Battered Woman Syndrome)***
- ❑ Causing death intentionally under the shock of surprise, or

The penalty under this provision is simple imprisonment not exceeding five years.

3. Ordinary Homicide: Art. 540

Ordinary homicide refers to those cases that fall neither under the category of aggravating homicide within the meaning of Art 539 nor under the category of extenuating homicide as per the provisions of Art 541 criminals are to be punished as cases of ordinary homicide.

Punishment for Ordinary Homicide: Rigorous imprisonment from 5 years to 20 years.

Negligent Homicide: Art. 543

- This offense mostly concerns itself with the death of small infants or children, the handicapped, or the elderly.
- **Infanticide**

The tragedy of maternal filicide, or child murder by mothers, which is conventionally termed as infanticide is a crime against life under our criminal law.

Punishment for Infanticide

Simple imprisonment for completed crime and mitigated punishment for attempted infanticide which doesn't caused harm.

Crimes against Persons

- The principles relating to crimes against person and health are laid down in Article 553.
- Intentional or negligent causing of bodily injury or impairing of another's health no matter whatever means or manner used is punishable under this part of the Code. Therefore, injury under the Code means both physical and mental injury'. *E.g. Mental or non physical injury.*
-

Crimes against Women and Children

- Art 35/4 of the Constitution of FDRE, 1995:
- Art 36/1 the Constitution of FDRE, 1995:

Some Serious Crimes Committed Against Women and Children

1. Abortion Art 551

2. Harmful Traditional Practices Arts 569-570

3. Bigamy Art 650

4. Rape Art 622

5. Maltreatment of Minors: Article 576

6. Failure to Bring Up: Article 659

7. Traffic/Trafficking in Women and Minors

Crimes Against Property:

1. Some Serious Crimes Committed Against Property

- **Theft 669**
- **Robbery 670**